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District Continuous Improvement Plan 2025-2028

GOALS

By June 2028, and in addition to the targeted focus on Literacy and Math Continuous Improvement at the site level in 2025–26, all students in all PK-12+ classrooms will: Know and understand the learning target and success criteria, successfully engage in grade-level and standards-aligned tasks from district-approved, high-quality instructional materials and structures, self-assess their learning and explain and justify their thinking connected to the learning target and success criteria. This will have a particular focus on our district's focal students.

ATTENDANCE

By June 2028, the overall percentage of students with good or acceptable attendance rates will increase by 15%, from 67% to 82%. In order to reduce the disproportionate gap, the percentage of students with good or acceptable attendance for all focal groups (Black & Native students, multilingual learners, students receiving special education services, and students experiencing poverty) will increase by 24%.

9TH GRADE SUCCESS

We will accelerate achievement and eliminate early high school opportunity gaps by ensuring all students finish 9th grade On Track. Our goal is to increase the percentage of all students finishing 9th grade On Track from 75% (June 2024) to 95% by June 2028, while closing the opportunity and outcome gap for focal students by increasing their On-Track rate from 53% to 95% over the same time period.

LITERACY

By June 2028, all students in 100% of PK-12+ Language Arts classrooms - with a particular focus on our district's most impacted focal students based upon our data (Native students, Black students, multilingual learners, students receiving special education services, and students experiencing poverty) - will (1) know and understand the learning target and success criteria and (2) successfully engage in grade-level and standards-aligned tasks from district-approved high-quality instructional materials and structures.

MATHEMATICS

By June 2028, all students in 100% of PK-12+ Mathematics classrooms -with a particular focus on district focal students (Native students, Black students, multilingual learners, students receiving special education services, and students experiencing poverty) - will (1) know and understand the learning target and success criteria and (2) successfully engage in grade-level and standards-aligned tasks from district approved high-quality instructional materials and structures.

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District Continuous Improvement Plan 2025-2028

STRATEGIES

ATTENDANCE

Tier 1 Integrated Climate & Culture Practices

Data-based Attendance Review and Response

School & Community-wide Attendance Initiative

9TH GRADE SUCCESS

Data Access & Literacy

Team Structures & Processes

Intervention Strategies

Transition Support

Instructional Practices

LITERACY

High-Quality, Inclusive Core Instruction

Assessment, Data, & Intervention: Formative Analysis and Differentiated Support

Family and Community Engagement

MATHEMATICS

High-Quality, Inclusive Core Instruction

Assessment, Data, & Intervention: Formative Analysis and Differentiated Support

Family and Community Engagement

ODE's Aligning for Student Success: Integrated Guidance for Six ODE Initiatives (IGG)

Overview of ODE's Integrated Guidance

The Oregon Department of Education's (ODE) Aligning for Student Success: Integrated Guidance (ODE's Integrated Guidance) combines nine existing grant programs under a single application and reporting process intended to streamline administrative requirements for districts.

PPS ensures our efforts are closely tied to our district priorities while meeting the significant application and reporting requirements necessary to secure essential federal and state grant funding.

The nine programs included are:

- **Continuous Improvement Planning (CIP):** Centered on ongoing educational improvement efforts.
- **Every Day Matters (EDM):** Focused on addressing chronic absenteeism through increased attention on student engagement, school culture, climate and safety, culturally sustaining pedagogy, and family and community involvement.
- **Career Connected Learning (CCL):** Focuses on linking career awareness, exploration, preparation, and training to industry expectations to close skill gaps, improve student outcomes, and promote equity and inclusion in the workforce.
- **High School Success (HSS):** Focused on improving graduation rates and preparing students for college and careers.
- **Student Investment Account (SIA)**: Aimed at reducing academic disparities while increasing academic achievement and meeting the mental and behavioral health needs of students.
- **Early Indicator and Intervention Systems (EIIS):** Supports the development of systems for early identification and intervention for students needing additional support.
- **Early Literacy Success School District Grants (ELSSDG):** Focuses on improving early literacy outcomes for students in PreK through grade 3.
- **Career and Technical Education (CTE/Perkins):** Supports the development of academic, technical, and employability skills for secondary students.
- **Federal School Improvement (CSI/TSI):** Targets improvement in academic outcomes for specific student groups and subject areas.

The Integrated Guidance process emphasizes planning related to equity, community engagement, well-rounded education, and strengthened systems and capacity.

PPS Plan and Priorities

Please find below the most recent PPS Plan & Application for the Oregon Department of Education's Integrated Guidance.

ODE's Aligning for Student Success: Integrated Guidance for Six ODE Initiatives

PPS Plan & Application 2025-2027

For Oregon Department of Education's Integrated Guidance

April 2025



PORTLAND Public Schools

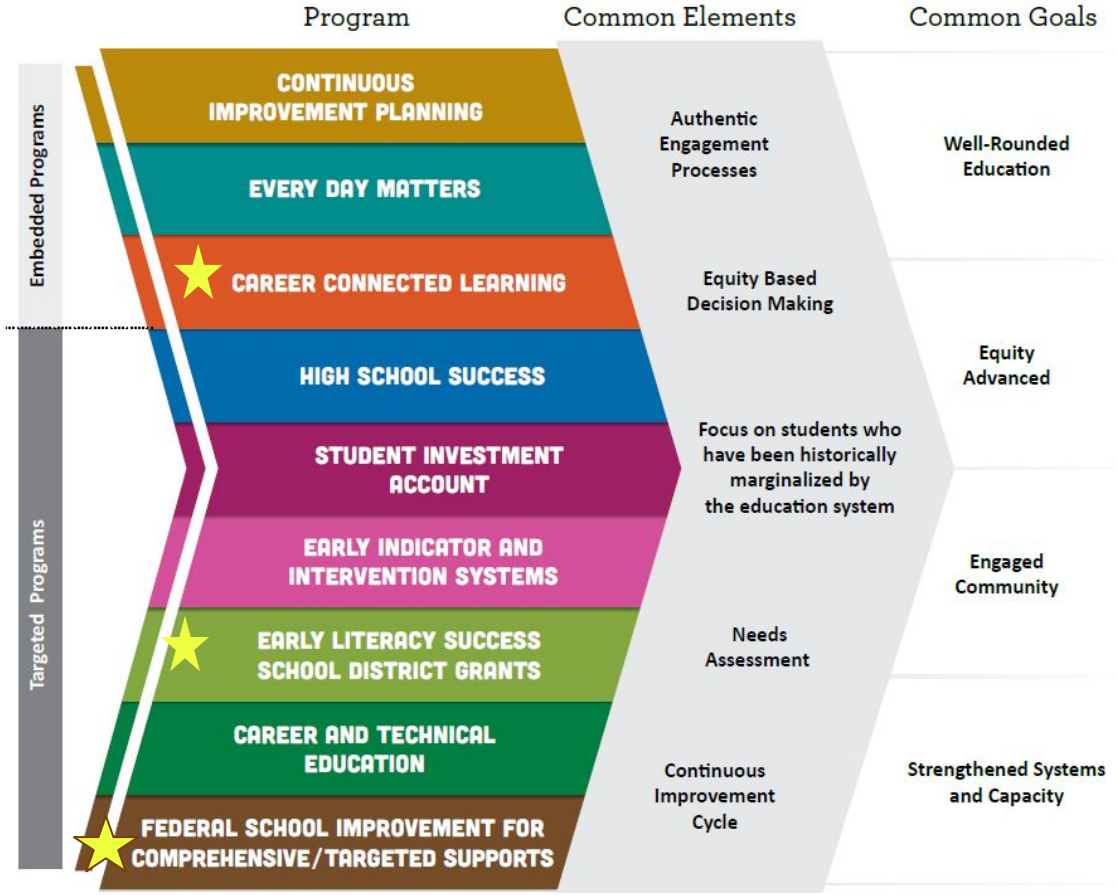
Contents

- Overview of ODE's Integrated Grants & Guidance
- Grant Funding
- PPS Plan Elements
- Charter School Plans

Overview of ODE's Integrated Grants and Guidance

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ODE Integrated Grant Program

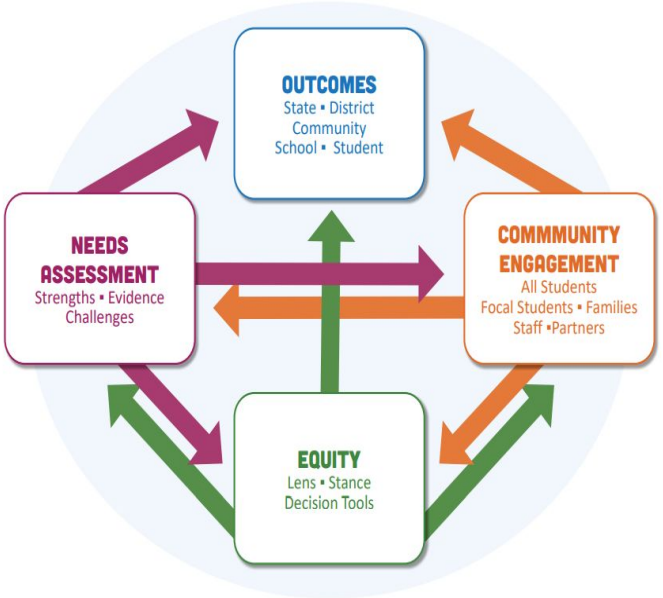


★ Represents a program added to ODE's Integrated Guidance since 2023

- ODE's Integrated Guidance includes nine programs
- They provide Portland Public Schools with about $125M in state and federal funding for the 2025–27 biennium
- The PPS plan was developed based on a comprehensive needs assessment
- The PPS district budget process, community engagement, and program specific requirements informed the plan

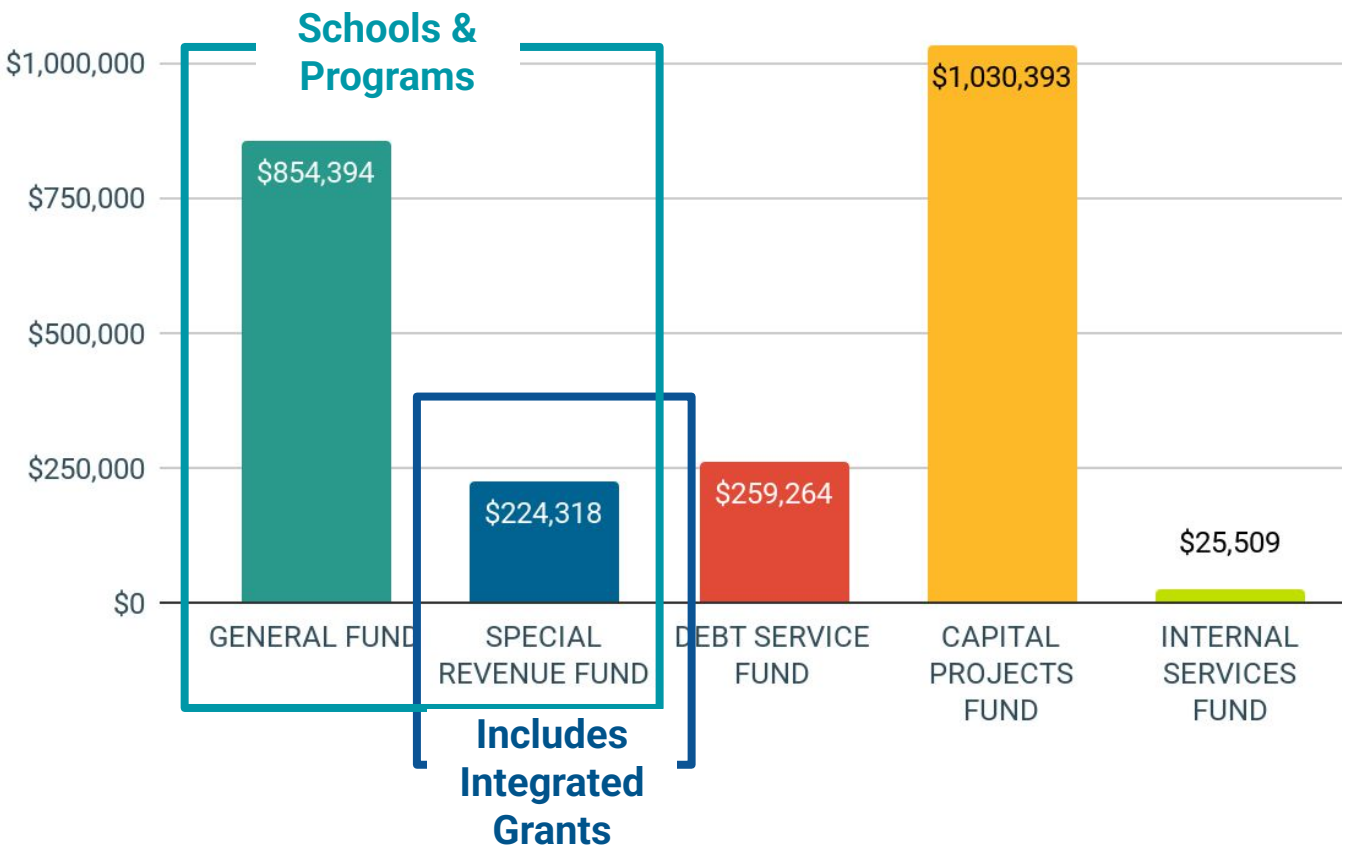
ODE Required Planning Process

- Use of an equity lens
- Community and staff engagement
- Tribal Consultation
- Comprehensive Needs Assessment
- Develop Plan Strategies & Outcomes
- Identify Activities and Investments
- Complete a 2-year Budget + Narrative Application



Funds in the PPS Budget

2024-25 Adopted Budget (In Thousands)



The total PPS budget is $2.39 billion budget and is divided into five funds. The Integrated Guidance Funding is part of the Special Revenue Fund.

The **Special Revenue Fund** supplements the PPS operating fund from local, state, and federal sources. In 2025-2026, $62M of the $224M comes from the state and federal grants included in this application.

Funding Allocations by Program

Grant Program	2024-25 Actual	2025-26 +/-	2025-26 Preliminary	2026-27 +/-	2026-27 Preliminary
High School Success (HSS)	$13,038,828	0.9%	$13,162,644	4.1%	$13,699,894
Student Investment Account (SIA)	$45,309,123	-0.3%	$45,163,269	4.1%	$47,006,668
ESSA (CSI/TSI)	$928,884	1.1%	$938,838	N/A	TBD
Career Technical Education - Perkins V (CTE)	$470,328	0.0%	$470,328	0.0%	$470,328
Early Indicators & Intervention Systems (EIIS)	$125,172	0.0%	$125,172	0.0%	$125,172
Early Literacy	$3,425,823	-8.6%	$3,131,583	4.1%	$3,259,403
Total Allocation	**$63,298,158**	**-0.5%**	**$62,991,834**	**N/A**	**$64.6M (Estimate)**

- The table above includes a breakdown of the allocations by grant.
- Combined grant funding was reduced by 0.5% from the 2024-25 school year. Grant funding is tied to ADMw, so declining PPS enrollment reduces the grant allocation in 2025-26.
- The PPS Integrated Grant budget plan allocates pass through SIA funds to charter schools and community-based organizations (CBOs). This plan allocates $2.2 million to charter schools and CBOs for 2025-26.

PPS Integrated Plan Priorities

The combined integrated grant investments are based on identified needs and center inclusive and joyful learning experiences for students to access the resources and supports they need to demonstrate excellence.

- Early Literacy Achievement
- K-12 Academic Success
- Attendance and Engagement
- Graduation and Postsecondary Readiness
- Safe and Supportive Schools
- Culture of Racial Equity & Care

Application Links

There are several required elements for this application. The Application Narrative and the Integrated Plan and Budget include outcomes, strategies, investments, and a comprehensive description of the planning process and priorities.

Additional attachments provide supplemental and more details information supporting the narrative and budget process.

Application Narrative & Budget

2025-27 Integrated Application Narrative

2025-2027 Integrated Plan and Budget

Key Application Attachments

- PPS Equity Lens
- Affirmation of Tribal Consultation
- Tribal Consultation Worksheet
- PPS Early Literacy Inventory
- Early Literacy Allowable Uses
- PPS Perkins Needs Assessment
- CTE Perkins Local Improvement Plan

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Charter School Plans

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Charter School Plans

- Four district-sponsored and two state-sponsored charter schools are included in the district's application. (Per a 2023 statutory change to the Student Success Act, PPS is responsible to administer the integrated plan for the two state-sponsored charter schools.)
- PPS provides the funding passthrough to charters only for SIA.
- PPS provides broad fiscal and monitoring oversight, but each charter school maintains its own integrated plan and budget.
- Where applicable, PPS actively engages with all charter leaders – district-sponsored or state-sponsored – to administer SIA funds, including coordinating budgets and aligning strategies.

District-Sponsored Charter School Plans

Charter School	Integrated Plan & Budget 2025-27	Early Literacy	District Charter Program Agreement (DCPA)
Emerson School	Outcomes & Strategies Budget	Inventory Allowable Uses	DCPA
Le Monde French Immersion	Outcomes & Strategies Budget	Inventory Allowable Uses	DCPA
Portland Arthur Academy	Outcomes & Strategies Budget	Inventory Allowable Uses	DCPA
Portland Village School	Outcomes & Strategies Budget	Inventory Allowable Uses	DCPA

State-Sponsored Charter School Plans

Charter School	Integrated Plan & Budget 2025-27	Early Literacy	District Charter Program Agreement (DCPA)
Cottonwood School of Civics & Science	Outcomes & Strategies Budget	Inventory Allowable Uses	DCPA
The Ivy School	Outcomes & Strategies Budget	Inventory Allowable Uses	DCPA

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Thank you

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Needs Assessment Summary

1. **Please offer a description of the needs assessment process you engaged in and the summary of results of that needs assessment. Please name the trends noticed through the state and local data review and indicate which data sources were used, including CTE-related information. Explain how the needs assessment and state and local data has informed specific decisions for this plan and budget. (500 words or less)** ***Additional requirement if applying with a sponsored charter:*** **Please include a brief description of your charter school(s) needs assessment process and how data has informed specific decisions for their plan(s) and budget(s). (Additional 250 words or less)**

The district is addressing a $40 million budget deficit while maintaining a steadfast commitment to student success and well-being. Despite financial constraints, we prioritized decisions that protect and enhance learning experiences.

Over the past four years, we reduced costs by $67 million through targeted, strategic measures—minimizing the impact on classrooms and educators whenever possible. These reductions demonstrate our ability to make difficult financial decisions while preserving our core mission of educational excellence.

Needs Assessment Process & Data Sources:
Our needs assessment process was rooted in the vision of engaging early and often with as much transparency as possible. The needs assessment for this Integrated Guidance plan was part of the overall district budget needs assessment with additional program specific engagements. Our efforts were designed to ensure that every stakeholder—educators, families, school leaders, and community partners—had multiple ways to engage in this critical conversation. We knew that a one-size-fits-all approach wouldn't work, so we created a variety of engagement methods to increase access and allow for both structured and organic dialogue. Through virtual town halls, listening sessions, direct surveys, and school-based discussions, we provided opportunities for stakeholders to engage in ways that felt accessible, meaningful, and relevant to their lived experiences.

We have to make critical budget reductions this year, so our engagement process included multiple rounds and prioritized reaching the people most impacted by these reductions. We heard from educators in staff meetings, parents in community forums, and school leaders through direct consultations, all of which have shaped our understanding of the real implications of the plan investments.

We also utilized state and local data sources, including:

- Enrollment trends and student demographic shifts
- Student achievement data (state assessments, iReady, MAP, and other local benchmarks)
- CTE participation rates and workforce alignment data
- Budget analysis and expenditure reports
- Equity impact assessments
- The Successful Schools Survey measuring schools climate and culture

Key Trends & Impact on Planning:
Our community was very clear about the importance of maintaining direct student supports. Schools also requested more autonomy in their staffing based on specific site-based needs. As a result, schools have more discretion and flexibility while also maintaining baseline staffing and investments for core programming across schools. Additional reductions were also made to central office staff and programming.

Additionally, CTE enrollment trends informed investments in high-demand career pathways to ensure equitable access to workforce opportunities.

Charter School Needs Assessment Summary
The needs assessment process for charter schools was rooted in data-driven practices designed to identify and address the unique requirements of each school's student population. The process is an ongoing approach to understanding the needs of each school's students, families, and community. The schools collected data through multiple channels, including equity audits, comprehensive surveys, focus groups, monthly Parent-Administrator Chats, student performance data, staff and board discussions, interviews, and direct feedback from staff and families. This process helped to inform where students, particularly those from underrepresented and underserved groups need additional support. By grounding individual charter school's planning and budgetary choices in data, each school could target interventions effectively, foster a safe, inclusive campus, and ensure all students have equitable access to the resources and support needed to thrive academically and socially.

School-specific data included:

- The Emerson School: Monthly Parent-Administrator Chats, student performance data, and staff feedback.
- Le Monde French Immersion: Parent and Staff survey, staff and board discussions, and student assessments.
- Portland Arthur Academy: Interviews with students and families and student assessment data.
- Portland Village School: Staff and Parent surveys, a parent focus group, behavior and assessment data.
- The Ivy School: Equity audit and Parent survey.

- The Cottonwood School: Family Survey and World Cafe engaging students, families, and staff.

Equity Advanced

1. **Explain how you incorporated your equity lens or tool into your planning and budgeting process. Outline key activities/strategies from your outcome/strategies Smartsheet and identify specific activities to support prioritized focal student groups.**

We use equity tools as an integral part of our continuous improvement cycles, ensuring that an equity lens or decision-making framework informs our policies, procedures, staffing, student support, resource allocation, and practices. In developing our plan and budget, we applied this lens to identify focal student groups who would be most impacted by our decisions. To center their voices, we engaged these students through focus groups and listening sessions, allowing their insights to shape our approach. For example, PPS held prioritization sessions with impacted focal groups early in the planning process. In these sessions, the district provided budget context to support meaningful engagement. PPS pushed into existing spaces to engage students and community members in prioritization sessions. The sessions were focused on district strengths, weaknesses, and areas for focus.

Key strategies and activities identified through this process to support prioritized focal student groups include: continued investments in student affinity groups and leadership, prioritizing site-based resources for schools based on an equity formula, and providing additional flexibility for school-based allocation of resources in order to meet unique needs of each school.

2. **What professional development or training is planned throughout the biennium for teachers, staff, and administrators to address the cultural, social, emotional, and/or academic needs of students, including those of focal students?**

PPS remains committed to sustained professional learning in alignment with our strategic priorities. Throughout the biennium, PPS will continue investing in professional development to address the cultural, social, emotional, and academic needs of all students, particularly focal student populations.

A continued and key focus is implementing the PPS Instructional Framework and Roadmap to Educational Equity, ensuring educators receive training in evidence-based, culturally responsive teaching practices. Site-based coaching and professional learning will align instructional strategies to improve equitable student outcomes. PPS also continues to strengthen Multi-Tiered Systems of Supports (MTSS) by training educators and administrators on tiered interventions, universal screening, and progress monitoring to ensure students receive timely, targeted academic and behavioral support.

Additionally, PPS had adopted Social Emotional Learning curriculum to be used by educators during advisory/core instruction. As part of the school counseling core curriculum school counselors and social workers continue to receive training on trauma-informed practices and mental health supports. The district also continues to implement the Master Arts Education Plan, integrating culturally relevant creative learning experiences.

Racial equity remains a central pillar, with ongoing anti-racism and equity-focused professional development through intentional focus and integration in professional development. We also continue our RESJ partnerships to enhance equitable access to education.

Through multi-tiered sustained investments in these areas, PPS is making long-term, system-wide shifts to ensure all students receive a culturally responsive, academically rigorous, and emotionally supportive education.

3. **What policies and procedures do you implement to ensure inclusion of children and youth navigating houselessness in all programs and activities?**

PPS implements clear policies and procedures to ensure the inclusion of children and youth experiencing homelessness in all programs and activities. The McKinney-Vento team is dedicated to removing barriers and providing access to critical resources, ensuring students receive equitable educational opportunities.

To maintain confidentiality, all student information is securely stored and accessible only to designated staff. School and central staff complete annual McKinney-Vento training, which includes privacy provisions and best practices for supporting homeless students. Informational materials on student rights are publicly available in school offices.

The McKinney-Vento team facilitates transportation for students without stable access, ensuring they can attend school and extracurricular activities. Enrollment barriers are addressed by eliminating the requirement for proof of a permanent address. Additionally, students receive academic support, including tutoring and counseling, to mitigate disruptions caused by housing instability. The team also ensures participation in school sports, clubs, and after-school programs by assisting with fees, uniforms, and logistics.

The offices of Student Support Services and Funded Programs collaborate to provide individualized support and remove obstacles to success. The McKinney-Vento team monitors student data, offers guidance, and works closely with school staff to ensure services are personalized. Schools play a vital role in fostering inclusive environments where students feel supported and free from stigma.

Through these proactive measures, PPS guarantees that students experiencing homelessness can fully participate in all educational programs and activities, promoting their academic, social, and emotional well-being.

4. **Describe any efforts to ensure opportunities for all students to participate in CTE programs that are generally considered male or female dominated.**

Portland Public Schools is committed to expanding access to Career and Technical Education (CTE) programs, ensuring all students have opportunities in fields traditionally dominated by one gender. We are piloting YouScience at Benson and McDaniel to help students identify career paths based on their natural aptitudes, broadening their awareness of opportunities beyond traditional gender norms. Additionally, we are developing targeted career-connected learning experiences to support underrepresented students in exploring high-wage, high-demand fields. These efforts include strategic partnerships with organizations like Oregon Tradeswomen, Inc., which provides mentorship and hands-on learning opportunities for young women interested in the skilled trades.

Our Pathway Ecosystem Model ensures that each career pathway is supported by industry, community, and post-secondary partners, creating sustainable access for all students. Measure 98 funding supports this work by expanding CTE programs and work-based learning opportunities. We also recognize that access begins with school-level support. To that end, we are working closely with counselors and master schedulers to eliminate barriers and increase enrollment in CTE programs for all student groups. Through these initiatives, PPS is fostering a more inclusive CTE ecosystem, empowering students to pursue careers based on their potential rather than stereotypes.

Well-Rounded Education

1. **Explain any changes or updates to your program review based on the Program Review Tool and Oregon's Early Literacy Framework. For example, will their recommendations shape the implementation of program-specific activities or something else? Additional requirement if applying with a sponsored charter: Please include any updates for charters.**

As a collaborative body, the PPS Early Literacy Advisory Committee—including community members, families, educators, and administrators—reviews implementation data and assesses progress. The Advisory Committee completed the Program Review Tool during monthly meetings from October, 2024 to January 13, 2025. On March 3, 2025, the committee shared their recommendations. On March 17, 2025, PPS shared the literacy grant items and budget decisions with the committee. In April and May, the Advisory Committee will further evaluate and discuss this information to develop program recommendations for the next biennium. The findings from the Program Review Tool, along with Oregon's Early Literacy Framework, will help shape these recommendations to ensure alignment with best practices in early literacy instruction.

The Advisory Committee includes community members, families, educators, and administrators who collaboratively review and provide feedback on implementation data and progress. Their role in discussing updates, making recommendations, and advocating for early literacy will help determine any necessary shifts in program-specific activities, professional development opportunities, or resource allocations.

By integrating insights from both the Program Review Tool and Oregon's Early Literacy Framework, the committee will ensure that the program continues to support young learners effectively while aligning with community needs and state literacy goals.

Please include any updates for charters:

Each charter school has developed their own plan and program to implement the Early Literacy Success School District Grant. Based on feedback from educators, administrators, and community members; along with the review of data and progress of their programs, charter schools have made determinations regarding updates to their early literacy plans for 2025-2027. While most of the charter schools' review and assessment of their implementation of the practices described in Oregon's Early Literacy Framework will remain the same, some schools will reassess their foundational skills curriculum and professional development opportunities for teachers. Overall, the charter schools will ensure that their plans and programs continue to support young learners effectively while aligning with community needs and state literacy goals.

2. **Complete the Early Literacy Allowable Use Descriptions Smartsheet that includes information around professional development, coaching, high-dosage tutoring, and extended learning. *No narrative response required.***

See application attachments for the district and charter school Early Literacy Allowable Use spreadsheets.

3. **How do you ensure curriculum design and the adopted curriculum for all content areas (core or basal and supplemental) consist of a clearly stated scope and sequence of K-12 learning objectives and is aligned to all state and national standards?**

Our curriculum adoption process is rigorous, inclusive, and aligned with ODE's adopted curricula, our vision, and our prioritized strategies. Our process begins with a scope and sequence based on state and national standards. All our curricula are standards-aligned. Content leads from PPS's Central Office assemble an adoption committee that consists of teachers, school-based administrators, and specialists.

Using best practices in the field, committee members develop a rubric to evaluate instructional materials. This rubric may take different forms, but it will always include state and federal standards and racial equity and cultural relevance criteria. We apply our rubric to ODE's adopted curricula and identify which options meet our criteria; we then crosswalk this list with EdReports to select the highest-rated curricula. In some cases, curricula may not meet the needs/standards of PPS. When this happens, we pursue an independent adoption process based on ODE's guidelines. That independent process will use the same rubric to ensure both standards and values alignment.

Curricular options are then narrowed based on the rubric, material review, and interviews after field testing. During field testing, students, community members, and families are invited to review and rate materials through community events and presentations.

Supplemental curricula are reviewed after we adopt base curricula. This ensures that supplemental materials support the new curricula. Supplemental materials are reviewed in a similar process as base materials.

4. **Describe your system for ensuring classroom instruction is well-rounded, intentional, engaging, and challenging for all students.**

Well-rounded education begins with a vision. Our vision is to graduate compassionate, critical thinkers who are able to collaborate, solve problems, and lead a more socially-just world. To achieve that goal, our processes are student-centered and trauma-informed, and our learning materials promote inquiry, exploration, and critical thinking.

As students age, we want them to take responsibility for their own learning and begin making connections between their schools and their community. We aim to create learning environments that are inclusive, participatory, motivating, and positive. This begins with our youngest learners. PreK students read, speak, listen, problem-solve, create, and play each day. We align instructional practices with our PPS Early Learners Core Values, which spans PreK to second grade. In our elementary classrooms, our core requirements ensure that every student has daily opportunities to engage in all core content areas, move and play, and develop key social skills.

Comprehensive learning experiences look somewhat different in sixth through twelfth grade. Our new core curricula are grade-level and standards-aligned, but students also have access to a wide range of electives. These include World Languages, AVID, Health, Physical Education, and a variety of arts pathways as articulated in our Master Arts Education Plan.

We are also deeply committed to bilingualism. Nearly half of our 81 schools now host a dual language immersion program in one of five languages: Vietnamese, Russian, Chinese, Spanish, and Japanese. Every year more PPS graduates earn the Seal of Biliteracy – a nearly threefold increase since 2019.

5. **How do you ensure that students, families, and community members experience a safe and welcoming educational environment, including but not limited to being free from drug use, gangs, violence?**

Ensuring a safe and welcoming educational environment is a priority for PPS. Each school integrates safety and inclusivity strategies within its School Choice & Improvement (SCIP) goals, guided by school site councils that include community members. Regular community surveys help shape these goals to address safety concerns effectively.

To foster inclusivity, all district-wide communications are translated into our six most commonly spoken languages, with schools providing additional school-based translations based on the language needs of their communities. During crises, we remind families of anonymous reporting methods and available support services.

We have culturally specific RESJ community partners that support students and families in advocacy, safety and sense of belonging. Our SUN schools provide families with supports to access their education. The RESJ department also provides interrupting hate and bias trainings for staff along with responding to school climate concerns with tailored coaching, support and professional development.

Since 2022, PPS' Youth Violence Prevention and Response Team has supported students who are identified as at higher risk of being victims or perpetrators of violence in the community. The team hosts events at high schools as part of their comprehensive program to connect students to resources and services. Daily student interactions are embedded into school support structures to ensure campuses remain free from drugs, gangs, and violence, reinforcing a safe and supportive learning environment for all.

6. **How do you ensure students have access to strong school library programs?**

Every elementary school has a library staffed by a certified library media specialist. We require that all elementary students receive at least one enrichment period with the specialist each week. Library visits may focus on reading engagement, or lessons driven by the Oregon School Library Standards. Specialists have also been trained in our new English Language Arts curriculum so they can supplement and support the knowledge-building themes students learn in their core classrooms.

The PPS Core Program Guide outlines the staffing requirements for libraries, including a minimum of 0.5 FTE for comprehensive middle schools. While library programming varies, it aims to inspire students to become lifelong readers, teach Oregon School Library Standards for accessing and using information, and

support core content educators. Our middle grades libraries serve the distinct developmental needs of middle grades students by providing both scheduled and free-time access.

All PPS high school libraries have a full-time specialist who provides programming focused on independent student information needs and interests, the effective and ethical use of information, and collaboration with classroom educators. Our high school libraries are multifunctional spaces where students can also work independently or with small groups.

In line with our vision and plan, we stock a variety of materials across our libraries that celebrate diverse cultural identities and lived experiences. As we have need and resources to purchase new materials, we seek to expand these resources.

7. **How are you monitoring the effectiveness of interventions for students who experience depression, anxiety, stress, and challenges with dysregulation?**

PPS is actively monitoring the effectiveness of interventions for students experiencing depression, anxiety, stress, and dysregulation through a data-driven, multi-tiered system of support (MTSS). This work primarily occurs in Tier 2 Student Intervention teams at each school where intervention fidelity and efficacy is tracked for students in need of support. Additionally, PPS Student Service Providers, School Counselors, School Social Workers, and School Psychologists, as well as contracted school based mental health therapists, are trained to maintain detailed case notes of their individual service delivery to students. Interventions and specially designed instruction for students who have Individualized Education Plans (IEP) are tracked by IEP case managers quarterly to measure adequate progress toward IEP goals.

The MTSS Attendance Work Plan integrates data-informed decision-making to evaluate interventions. Through school-based teams like ASERT, we assess the impact of support strategies and adjust approaches as needed. Our focus is on identifying effective interventions that improve student engagement and well-being.

To address chronic absenteeism—often linked to mental health challenges—MTSS is conducting focus groups to uncover root causes. This process, in collaboration with Panorama and national data from the Successful Schools Survey, helps shape targeted, evidence-based strategies that support students' emotional and behavioral needs.

Additionally, PPS surveys provide real-time insights into student well-being, allowing us to track trends, measure intervention effectiveness, and refine our approach. By continuously analyzing data, we ensure that our interventions foster resilience, emotional regulation, and academic success.

Through these efforts, PPS remains committed to creating a supportive and responsive environment that meets the needs of all students.

8. **How do you identify and support the academic needs of students who are not meeting or exceeding state and national standards for focal student groups? What systems are in place for supporting the academic needs of students, including for focal student groups, who have exceeded state and national standards?**

We are committed to accelerating learning for all students while also closing persistent, unacceptable achievement gaps between White students and Students of Color. Our Research and Assessment team works with our educators, school staff, school leaders, and Office of Student Support Services to continually reevaluate how we identify and support students' needs.

PPS provides multi-tiered systems of support (MTSS) and a continuum of instructional support. MTSS focuses on the whole child, supporting academic learning while addressing behavior, social-emotional needs, and attendance. We identify equitable, evidence-based instruction, intervention, and assessment practices to ensure that every student receives the support they need. To that end, our comprehensive assessment includes universal screening, diagnostic assessment, common formative assessment, benchmark assessment, and summative measures.

Within the MTSS framework, PPS dedicates time to professional learning communities. These meet regularly to collaborate around standards-based instruction, common assessment, learning progress, and learning response. Through these communities, educators collaboratively strategize how they can best meet students' needs. This work includes using the DuFour Four Questions to extend learning for advanced students.

PPS supports students who exceed standards through the TAG Department, collaborating with multiple departments to identify gifted students, including those from underrepresented groups. TAG services provide resources, training, and individual TAG plans to support differentiation and acceleration. We provide opportunities for grade and subject acceleration beginning in early grades, with pathways in math, CTE, Dual Credit, AP, and IB available in high school. Beyond academics, we recognize giftedness in leadership, creativity, and the arts.

9. If planning to develop a new CTE Program of Study, please name the intended program to be started, timeline, and the steps taken or to be taken.

Portland Public Schools is committed to expanding CTE opportunities to align with student interests and workforce needs. Lincoln High School will launch a new Health Science program, preparing students for careers in the growing healthcare sector through hands-on learning and industry partnerships. Additionally, Benson Polytechnic High School will expand its Broadcasting program to include the revival of a historical magazine, offering students real-world experience in journalism, media production, and storytelling. Both of these programs will begin during the 2025-2026 academic year. Our team will lead the application process with ODE once the schools confirm their forecasting numbers for each program, and will collaborate directly with the school teams to build a strong program with a three-year pathway.

PPS takes a systems-level approach to CTE expansion, ensuring new programs align with our Pathway Ecosystem Model and reflect regional workforce trends. We actively collaborate with industry and post-secondary partners to design high-quality programs that prepare students for career success. We are leveraging YouScience to help students explore career pathways based on their aptitudes, ensuring equitable access to opportunities. PPS will continue to support schools in developing new CTE programs that align with industry and education partners, ensuring all students have access to high-quality career-connected learning experiences. Any new programs will align with ODE's High Quality Program Rubric to ensure rigor, sustainability, and workforce alignment.

10. **What CTE defined work-based learning experiences are available for students? Describe any efforts you are making to expand these opportunities.**

Portland Public Schools provides a range of CTE-defined work-based learning experiences to ensure students gain hands-on exposure to careers aligned with their interests. High school career coordinators play a critical role in facilitating these opportunities, which include internships, job shadows, industry tours, and guest speaker engagements across multiple career pathways. We continue to strengthen our partnership with the Portland Workforce Alliance (PWA), which connects students with industry professionals and career experiences across a wide range of fields. Additionally, we collaborate with the Boedecker Foundation to provide specialized work-based learning opportunities in the arts, ensuring students have access to creative industry experiences.

To expand and equitize access to work-based learning, we are developing a student-facing portal where all available opportunities will be centralized in a single location. This ensures that every student—regardless of school or background—can easily access and participate in these experiences. Our approach aligns with the Pathway Ecosystem Model, ensuring that industry, community, and post-secondary partners are actively engaged in supporting students' career readiness. By continuing to develop strategic partnerships and streamlining access through technology, PPS is creating a comprehensive, equitable, and scalable work-based learning system that prepares all students for future success.

11. **Do your students have the opportunity to earn CTE college credit while in high school? If yes, no explanation required. If no, please explain.**

Yes

Engaged Community

1. **What improvements have you made when engaging with your community, including focal students, families, and staff, in the past two years? What barriers, if any, continue to exist or were experienced?**

Over the past two years, we have improved our community engagement efforts, making it more systematic, transparent, and inclusive. We expanded the timeline to allow for deeper engagement, beginning in October with focal group discussions, followed by a community priority survey, a principal survey, and multiple rounds of feedback. As budget scenarios evolved, we emphasized transparency by openly sharing potential reductions and facilitating listening sessions and town hall forums. Insights gathered were synthesized and shared with the Community Budget Review Committee (CBRC) and the Board to inform decision-making.

Despite these improvements, challenges remain. Limited dedicated resources mean engagement efforts must be balanced with existing responsibilities. While we have increased outreach to historically underserved communities, engagement among focal groups remains an area for growth, as participation from white families continues to be disproportionately high. Moving forward, we are committed to refining our strategies to ensure all voices, particularly those of our focal students and families, are equitably represented in decision-making.

3. List the strategies used to engage with focal students and families about the integrated plan throughout the planning process. (At least two strategies are required.)

Portland Public Schools employs multiple strategies to engage focal students and families throughout the planning process, ensuring their voices shape district initiatives. We designed specific engagement efforts to reach these communities. We also have various levels of engagement ranging from overarching budget focus to program specific.

An overarching strategy involved engagements with community-specific focus groups such as the RESJ Community Advisory Committee, Migrant Education Parent Advisory Council, Culture in the Classroom, Title VI Indian Education Indian Parent Committee, and the Family Advisory Council on Education. These groups provide direct input on policies, budget priorities, and program development.

The CTE team holds program-specific engagements with a specific focus on CTE and career-connected learning initiatives. The PPS Student Council plays a critical role in shaping CTE programming by elevating student voice in decision-making. This council, composed of students from diverse backgrounds and career pathways, provides direct feedback on program offerings, work-based learning opportunities, barriers to access, partnership strategy, and CTE marketing. Their insights have informed strategies to expand industry recognized credentials, increase awareness of CTE pathways, and improve equitable access to career-connected learning experiences. The strategies ensure that both students and industry voices inform our CTE strategic plan, leading to more inclusive, responsive, and impactful career pathways for all PPS students.

By employing a range of strategies with our focal groups, we ensure that our integrated plan reflects the needs and aspirations of marginalized students.

4. List the strategies used to engage with staff, both classified and certified, about the integrated plan throughout the planning process. (At least two strategies are required.)

PPS has made a deliberate commitment to more active engagement with staff at multiple levels. This includes multiple rounds of principal engagement, central office sessions, and educator town halls, ensuring that both certified and classified staff have opportunities to inform the budgeting and planning process.

Principal and Leadership Engagement: School leaders were engaged through several rounds of structured discussions to provide ongoing input on resource allocation, staffing formulas, and instructional priorities. These discussions ensured that feedback from school leaders directly shaped adjustments to reductions, mitigation strategies, and flexible budgeting approaches.

Educator Town Halls & Central Office Sessions: Educator town halls and listening sessions with central office staff allowed educators to voice concerns and provide real-time feedback on how budget decisions impact classrooms, instructional support, and student services. A key outcome of these discussions was a shift from strict reductions to flexible strategies, such as more school-based decision-making and modifications to instructional coaching allocations, based on staff input.

This engagement model aligns with the Consult and Involve spectrum, ensuring that staff voices not only inform but actively shape district decisions. By iteratively refining plans based on staff feedback, we continue to prioritize transparent, collaborative, and data-driven decision-making.

5. Demonstrate focal group engagement. What was the biggest learning from this engagement effort?

There is a critical importance in creating intentional, community-centered spaces for Black and Native students, families, and community members. The Culture in the Classroom engagements reinforced that meaningful engagement goes beyond traditional outreach—it requires trust-building, shared leadership, and active listening. By structuring separate affinity spaces, we have sought to honor the unique experiences of Black and Native communities while fostering open dialogue about academic outcomes, safety, and belonging.

While systemic barriers persist, these community-led conversations illuminated actionable solutions that directly inform instructional practices. The engagements emphasized a need for culturally responsive teaching, representation in curriculum, and sustained accountability from district leadership. Most notably, participants emphasized the urgency for action and accountability - this work cannot remain in the discussion phase; it must translate into tangible actions and measurable outcomes that directly impact Black and Native students.

Moreover, the participants recommended future efforts should prioritize deeper partnerships with senior leaders, principal supervisors, and the Board of Education. By actively engaging in these collective conversations with more leaders across PPS, participants feel confident in their ability to drive results faster and hold leaders accountable for successful implementation.

6. Demonstrate staff (classified and/or certified) engagement. What was the biggest learning from this engagement effort?

This educator town hall demonstrates engagement with certified staff, including teachers, school administrators, and licensed educators, as well as classified staff in support roles. The Educator Town Hall provided a platform for staff across multiple levels of the district to voice concerns, ask questions, and provide feedback on budget planning and its impact on schools. The most significant takeaway from the Educator Town Hall was the critical need for clear, transparent, and proactive communication regarding budget decisions and their impact on staffing, resources, and instructional programs. Educators expressed concerns about staffing reductions, changes to summer programming, and reductions in licensed specialists, emphasizing the uncertainty surrounding how these decisions would be made.

Educators want more detailed and timely information about how budget decisions will affect their roles, students, and school communities. The responses indicated that many questions remain unanswered, highlighting the need for continuous engagement and clearer messaging from district leadership.

Additionally, the engagement reinforced that staff want to be included in the decision-making process, not just informed after decisions are made. Many educators requested more transparency in how Full-Time Equivalent (FTE) reductions would be determined and emphasized the need for student-centered budgeting approaches that prioritize equitable outcomes.

This effort underscored that budget decisions should be communicated with clarity and in a way that acknowledges educator concerns, ensuring that staff feel heard and valued as key stakeholders in the district's financial planning.

7. Demonstrate focal group, staff, or community engagement. What was the biggest learning from this engagement effort?

The learning from the Community Survey and overall community engagement was presented to the PPS Board and Community Budget Review Committee (CBRC) on March 4, 2024. The CBRC reviews, evaluates, and makes recommendations to the PPS Board of Directors regarding the Superintendent's Proposed Budget and any other budgetary issues the CBRC or the Board identifies. The committee is composed of eight to twelve volunteer members and student members. They meet monthly during budget development season, November through June, with additional meetings scheduled as needed.

During the Q&A portion of the presentation, Board and CBRC members were asked to provide an insight and a wondering about the data. They were interested in understanding how the learning from these engagements translated into budget decisions. Specific areas of interest were focused on how PPS is balancing core/baseline versus flexible funding for schools and safeguarding classroom educators for smaller class sizes and direct supports. They also provided feedback about the impacts of specific staffing reductions and learnings from other engagements.

8. Demonstrate focal group, staff, or community engagement. What was the biggest learning from this engagement effort?

The biggest learning from the Migrant Education Parent Advisory Council meeting was the critical need for stronger representation, inclusion, and culturally responsive engagement for migrant families, emerging bilingual students, and families navigating poverty. Parents expressed a lack of trust and connection with school staff, particularly when staff turnover is high and Spanish-speaking personnel are scarce. This highlights the urgent need for retaining bilingual educators and ensuring consistent staffing to build meaningful relationships.

Another observation was the importance of extracurricular activities, music programs, and cultural celebrations in fostering student motivation, engagement, and well-being. Parents emphasized that access to advanced music classes and culturally inclusive activities like Día de los Muertos celebrations helps students feel seen and valued. However, disparities were noted, as some schools offer richer extracurricular experiences than others, often reflecting socioeconomic divides.

Additionally, parents raised concerns about barriers to participation in school meetings and decision-making processes, noting that white families are often the most involved while non-English-speaking families feel excluded. Suggestions included mandatory principal-parent meetings, improved outreach to non-English speakers, and more equitable access to school leadership discussions.

This engagement effort reinforced the importance of culturally responsive staffing, intentional family engagement, and equitable access to school resources. Schools must prioritize hiring bilingual staff, creating inclusive decision-making spaces, and expanding culturally relevant programming to ensure that all families feel welcome and valued.

9. Demonstrate focal group, staff, or community engagement. What was the biggest learning from this engagement effort?

PPS administered a nationally normed community survey from October to November 2024. In all, nearly 4,000 people responded including parents, PPS staff, students, and members of the community. We had good participation and heard from different sectors of the community. Seventy percent of the responses were from parents and 13% were from teaching staff. Participants recommend that PPS eliminate a few programs versus reduce services across programs. Participants emphasized the importance of classroom instruction, teaching, and learning over community partnerships or extracurricular activities.

In the qualitative responses, hiring and retaining high-quality staff was the most frequently mentioned theme with 18% of comments referring to staffing. We also saw comments related to the visual and performing arts special education, and budget concerns.

When asked, "If you could change one thing about this school or district, what would it be?" The most frequently suggested change was to reduce class sizes. When asked "What is the single most positive aspect of this school or district?", caring teachers was most frequently reported.

When asked how well PPS is doing across nine areas, the highest-rated response was Diversity & Inclusion and the lowest-rated was Student Achievement

When asked how important it is for PPS to focus on those same nine areas in order to be successful, the highest rated was Classroom Instruction and the lowest rated was Community Partnerships.

10. *Response required only if applying with a sponsored charter.* If a sponsored charter is applying with a district, one artifact per charter needs to be submitted and should demonstrate focal group, staff, or community engagement. Who was engaged in each charter artifact? What was the biggest learning from the engagement effort(s)?

Emerson: The feedback gathered from our family listening sessions informs our planning and budgeting process, helping us prioritize areas such as academic support, communication with families, and enhancing student engagement. For instance, during our initial chats, a theme was the need for increased or more effective communication between school and home. We found that families wanted less digital communication and more "old school" communication. As a result we purchased a new sandwich board to keep at the front door with colorful current daily reminders, we are offering our newsletters printed or emailed and have a community events bulletin board in our entryway. This needs assessment process allows us to remain responsive to the needs of our community, guiding the development of our school's goals and financial allocation for the upcoming year.

LeMonde: Within the context of our Board of Directors survey/discussion, we learned that the engagement data highlighted gaps in academic achievement and underscored the importance of support for social-emotional learning, academic skills building, as well as professional development in serving students with disabilities and other historically underserved communities. In response, we allocated budgetary resources to purchase instructional materials that engage students meaningfully and support academic interventions. The assessment also informed the decision to hire additional staff to provide classroom support and targeted academic interventions for students not meeting benchmark.

Portland Arthur Academy: Who was engaged/who did you call, and why did you choose those families? The families engaged were those of students who were new to the school or from underserved racial or ethnic backgrounds. These families were chosen to ensure they felt welcomed, supported, and informed about their child's educational journey. Reaching out to these families was crucial to building trust, providing essential school resources, and ensuring their children had access to the full range of academic and extracurricular opportunities.

What was the biggest learning from the engagement efforts?
The biggest learning from these conversations was gaining insight into what success means for families and how the school can support both students and families in feeling included. Many families emphasized the importance of their children feeling like they belong and being part of a community, highlighting that strong, personal connections with staff were key to fostering inclusion.

Positive feedback was given about teachers who took time to understand and engage with students, helping them feel seen and valued. Families also emphasized the importance of open communication about their child's behavior and progress. Several shared stories of when their child felt excited or engaged in class, reinforcing the value of meaningful, interactive learning. Additionally, families expressed a desire for their children to receive support in developing social skills, emphasizing the importance of helping students build relationships and navigate social situations positively.

Portland Village School: The needs assessment at PVS included staff and parent surveys, a parent focus group, behavior data, and school-wide formative and summative assessments. Additionally, discussions during Tier II meetings and SIT team discussions were utilized to drive our process. The data highlighted behavioral and emotional regulation struggles with students in our youngest grades (K-3), with physical aggression driving referrals in the youngest grades. Additionally there are academic areas for improvement noted in math. Discussion and analysis pointed to struggles with instruction at the younger grades due to disruption in learning from dysregulated students, and a need to work in small groups with older students to close learning gaps. Of particular note is our high level of students who have IEPs and 504s who are struggling with emotional regulation. In response, we allocate budget resources to continue to support student behavioral and SEL needs and will adjust to reduce class sizes with an emphasis on the youngest grades, such that students struggling with behavior or academics could get additional support, as well as math intervention groups with all students.

In alignment with our district's Student Investment Account (SIA) strategies, Portland Village School's comprehensive needs assessment directly informed our plan, emphasizing differentiated approaches tailored to the students of the Portland Village School. Our assessment process utilized an equity lens to review a parent survey, a parent focus group, staff survey, and analysis of SIT and Tier II documents, as well as behavior and academic data.

Cottonwood: Our Spring 2024 family survey provided insights that will lead us to hone our practices in Place-Based Education through a listening session. Along with our Board, we facilitated a "World Café" to engage students, families, and staff in identifying key priorities for school improvement. This collaborative process provided a platform for diverse voices to contribute to shaping our vision for the future. By using structured conversations and sharing food, we gathered valuable insights and fostered a sense of shared responsibility for school progress. We incorporated the voices of over 50 parents/ guardians, 24 students, and 25 staff members.

What we learned: Cottonwood stakeholders agree that some of our many strengths are found in our Place-Based mission, small class size, and commitment to social justice. We aim to increase inclusion and achievement by implementing comprehensive parent education, improving communication, and connecting to wrap-around services. We also learned that our Academic data highlights a need to continue to close the gap in Math, particularly for our students of color and those experiencing poverty.

Ivy: Our charter school's needs assessment process is rooted in data-driven practices designed to identify and address the unique requirements of our student population. The assessment included an equity audit completed by all staff members, a comprehensive parent survey, and a variety of classroom-based formative and summative assessments. Additionally, observational insights and performance data from reading and math benchmarks allowed us to pinpoint areas where students, particularly those underserved and below level, need additional support. The data highlighted gaps in academic achievement, especially in reading and math, and underscored the importance of culturally relevant resources and support for social-emotional learning (SEL). In response, we allocated budget resources to purchase instructional materials that reflect diverse cultural backgrounds, engage students meaningfully, and support academic interventions. The assessment also informed the decision to hire additional campus support staff to lead SEL initiatives and provide equity training for all educators, ensuring a culturally responsive environment.

By grounding our planning and budgetary choices in data, our school can target interventions effectively, foster a safe, inclusive campus, and ensure all students have equitable access to the resources and support needed to thrive academically and socially.

11. Looking at your Community Engagement process holistically, what did you learn from the community and staff? Explain how you applied the input to inform your planning.

Through a comprehensive engagement process, including focal groups, town halls, surveys, and listening sessions, we learned that transparency, clarity in decision-making, and prioritization of student-centered investments are paramount to our community and staff.

A key takeaway was the need to communicate early and often to ensure stakeholders understood the budget realities and could provide meaningful input. We also adopted a system-wide lens to collaboratively plan resources and assess the comprehensive impact of reductions, considering school-based resources, enrollment shifts, staffing formulas, Title I funding, and parent/foundation contributions.

Community feedback underscored the importance of preserving direct student-facing staff and minimizing disruptions to classroom learning. Through an iterative process, we refined not just what we reduced, but also how those reductions would impact schools. Listening sessions helped shift the approach from strict line-item reductions to more flexible, strategic adjustments, such as blended classrooms and mitigation plans to minimize negative effects.

For example, while instructional coaching was identified as a strategic investment, we had to find flexibility in its implementation rather than eliminating it entirely. This balance between maintaining essential instructional support and making necessary budget reductions was a direct result of community and staff input. By centering community and staff voices, we reinforced our commitment to

responsive planning, open dialogue, and prioritizing student success while navigating financial constraints.

Strengthened Systems and Capacity

1. **What system do you have to recruit, onboard, and retain quality educators and leaders, including those who are representative of student focal groups?**

A foundational goal in our Strategic Plan is to intentionally recruit, hire, develop, and support a diverse workforce. These efforts are currently underway and include analyzing our current culture, processes, policies, and systems; deepening our understanding of the current and ideal employee experience; and implementing inclusive and equitable processes, practices, and accountability systems. At the same time, we are thoughtfully leveraging our existing programming and professional development such as our Grow-Your-Own career pathway programs, Racial Equity-Centered Pipeline Initiative (partnership with the Wallace Foundation), a comprehensive approach to teacher professional learning, monthly professional learning for administrators, and coaching/mentoring for new educators.

In addition to investing in the workforce broadly, there is an urgent need to hire more educators of color, including multilingual individuals, who bring a range of benefits to students, schools, and the community. PPS is investing in recruiting and retaining diverse educators by focusing recruitment strategies, retention bonuses, and personalized professional learning opportunities on educators of color and hard-to-fill positions who serve our students furthest from educational justice. Currently, we are aligning our recruitment and retention strategies for educators of color with national best practices and creating a shared recruitment framework that includes a vision, metrics, and an implementation plan for future years. We recently integrated affinity-based components into monthly induction and coaching and provided personalized professional learning opportunities for leaders of color and their white counterparts in learning equity-centered leadership practices.

2. **What systems are in place to ensure that focal students are being taught by effective and highly qualified teachers as frequently as other students?**

Every student deserves a high-quality, equitable education, and for focal students, this is especially critical. Our professional learning communities (PLCs) and student intervention teams monitor progress and implement targeted instructional strategies. We use the Danielson and PPS Instructional Frameworks to assess teaching quality, ensuring specific, actionable, and timely feedback—especially for new or less effective teachers. Administrators regularly observe classrooms, provide feedback, and conduct evaluations aligned with best practices and labor agreements.

Each school has an instructional coach to support teacher development through PLCs, one-on-one coaching, and school-based professional learning. Our coaching model emphasizes planning, implementation, assessment, and reflection. We address disparities through targeted interventions, allocating academic interventionists based on standardized assessment data. High-dosage tutoring, three times a week in small groups, strengthens foundational literacy and algebra readiness at priority schools.

In alignment with our agreement, we have a layered approach to developing and employing effective teachers with a deep focus on equity and ensuring focal students are placed with effective teachers. We

also have additional and supplementary resources, including coaches and student supports, in place in Title I, TSI, and CSI schools. We utilize high-quality curriculum, professional learning, and performance reviews to maintain instructional excellence. New teachers—first through third-year educators and those with restricted licenses—receive mentorship from our twelve Mentor-Induction Coaches. These coaches provide weekly observations, feedback, co-planning, modeling, and co-teaching to support new educators in delivering high-quality instruction to their students.

3. **Describe your system for analyzing disciplinary referrals, suspensions, and expulsions, including disaggregating this information by focal groups.**

PPS believes that each of our students is talented and capable of learning, growing, and achieving. With this as our starting point, our responsibility is to implement discipline policies that advance each student's full potential. Our discipline data shows that Black, Native American, and other students of color as well as special education students are disproportionately disciplined. Our commitment to data analysis includes disaggregated quarterly data reviews that are shared with Senior Leaders and building administrators. Every school has a Climate Team that is responsible for reviewing behavior data and using this data to inform their school climate plans. The MTSS department continues to provide professional learning and coaching to expand and deepen these practices.

4. **What systems are in place to support students and families who are transitioning between LTCT sites, YCEPs, and JDEPs to schools?**

Close ongoing family and student engagement along with integrated regional partnerships are core to the services provided by PPS Reconnection Services (RS). Once a student is referred to RS, an outreach coordinator is assigned who learns more about the specific student who then goes through a family intake process. The process involves support options, enrollment, and connections to wrap-around services. The outreach coordinators are embedded at schools and continue working with each student until they determine the student is ready for a supported transition. Perseverance to reach and serve students along with a sustained investment in the relationships are core to the engagement and essential for a successful student.

Additionally, Multnomah Education Service District (MESD) delivers educational services to youth housed in the Donald E. Long Juvenile Detention Center as well as in the two Multnomah County jails. It also provides these services in multiple other counties across the state and in three state youth correctional facilities, which means they work closely with incarcerated youth to help them earn credits toward graduation, create educational plans and profiles, and develop post-secondary plans. Through several grants, MESD also provides individualized transitional services for justice-involved youth, including those currently and formerly incarcerated. These wrap-around transitional services are based on students' ongoing input and needs.

Through partnerships with HOLLA and Dr. Danielle Dupuy, MESD also provides venues for youth to share their experiences, as part of the school-to-prison pipeline, with educators and justice professionals at professional learning events such as the Building Bridges to Equity series and Reflections on Pushout, a documentary.

5. **How do you support students and families in the transition between early childhood education programs and local elementary school programs from elementary to middle grades?**

From middle grade to high school? From high school to postsecondary education and/or workforce?

In planning these transitions, we center students and their experiences. The cornerstone of a successful transition is providing students with opportunities to experience their future educational space. We have a tight vertical alignment between students' current spaces and the spaces they will enter. That includes ensuring staff are communicating and working together.

PK to K: Guided by these broad principles, we make specific provisions for each transition. As noted earlier, our Pre-Kindergarten through third-grade advisory council helps us analyze and improve student transitions to kindergarten. Kindergarten transition activities include enrollment, recruitment, and summer bridge events.

ES to MS: Our middle schools welcome new students at a 6th grade-only first day of school. This provides an opportunity for incoming 6th graders to meet teachers and school staff, learn more about their classes, and navigate their new school. In most cases, 8th-grade students lead small groups of 6th-graders to provide near-peer mentoring on the first day of school and beyond.

MS to HS: Our 8th-grade Student Success Teams facilitate successful transitions from 8th-grade to high school. Site level teams support students through forecasting, high school options process, and social-emotional lessons. All 9th-grade students are part of Student Success Teams, which are composed of communities or academies. Each team has at least three interdisciplinary teachers who share a common release time to review student data and discuss supports and instructional strategies.

Leap into 9th Grade, a summer bridge program, prepares students to excel in high school and get a head start working with their new teachers and peers in the summer for three weeks. The program embraces multiple ways of knowing and acknowledges funds of knowledge. The program individualized learning experiences, and students receive a 0.5 high school elective credit upon successful completion. All PPS high schools also offer 9th Grade Communities which ensure that 9th graders are known and supported by their teachers.

HS to Postsecondary: High School Counselors, College Coordinators, and Career Coordinators support students with developing post-secondary plans. We also partner with Portland Community College to host a bridge program to decrease summer melt for graduates who plan to attend PCC in the fall.

6. **What career exploration and career development coursework and activities are offered to support awareness, exploration, preparation, and training at the various grade-bands? Describe your system for sharing information with students and parents regarding career connected learning and CTE opportunities, including any guidance, counseling, and connections to education plans and profiles.**

All PPS Students in grades 6-12 have an opportunity to complete an Education Plan and Profile which provides a variety of activities and experiences designed to guide students in thinking about their interests, strengths, and post-secondary plans. The PPS Education Plan and Profile Infographic displays the components students will complete by grade level. At the high school level activities are captured in Maia Learning and parents have view access to review their student's results and progress throughout high school.

Connected to CTE, there is deeper career exploration and preparation through CTE courses, work-based learning experiences, and industry partnerships. Students participate in job shadows, internships, mentorship programs, and industry-recognized certifications. Partnerships with the Portland Workforce Alliance and Boedecker Foundation expand career-connected learning in multiple fields. PPS has developed a comprehensive marketing plan to share many of these opportunities with students and is actively working on the development of a student-facing portal where all career-connected learning opportunities will exist. The team is providing additional training to counselors around CTE and continues to work directly with career coordinators at each school to provide ongoing career-connected learning opportunities. We also continue to work directly with industry partners to provide opportunities to students, both through career-focused events, and opportunities for guest speaking at schools.

7. ***For districts required to engage in Tribal Consultation only:*** **Describe the professional development opportunities provided to ensure that teachers and other school professionals who are new to the Indian community are prepared to work with Indian children and that all teachers who will be involved in programs under this guidance have been properly trained to carry out such programs.**

The district's Culture in the Classroom initiative equips educators with culturally specific strategies to create a welcoming environment for Native students. The work includes a Guiding Council with members of the Native community. Deliverables include "Look fors" for both teachers and students. We also contracted a Literature Review that focuses on Native student success.

Teachers receive curriculum and instructional support to integrate Tribal History/Shared History lesson plans, with dedicated resources available online. For grades 6-8, pacing guides explicitly include SB13 lessons, and an 8th-grade field trip to the Columbia River dam is being developed in coordination with the Indian Education Department and the Columbia River Inter Tribal Fish Commision. In K-5 ELA and Social Studies, Tribal History/Shared History curricular resources with lessons are available for all teachers, and educators are encouraged to teach these lessons. Additional work is underway to conduct classroom observations and provide feedback. High school educators also have access to curriculum-linked lesson plans with guidance on integrating them into core subjects throughout the year. The Academic Director of Indian Education is a current member of an advisory group developing new SB13 lessons that will soon be available state-wide. They will be geared toward school administration and instructional coaching staff.

Additionally, principals receive SB13 instructional highlights via newsletters and meetings. A PreK-12 team is developing a Look For Tool and a district-wide Scope and Sequence document to ensure the effective integration of Indigenous perspectives in all classrooms.

Early Literacy Inventory and Prioritization

For the purposes of prioritizing Early Literacy funds, we have used multiple sources of data, including but not limited to state Language Arts summative assessment data and, for eligible applicants who serve English Language Learners, English Language Proficiency Assessment data.

1. **Using the Smartsheet link, make any necessary adjustments to your previously submitted Early Literacy Inventory. Please note the literacy inventory requires up-to-date information of all literacy assessments, tools, curricula, and digital resources used to support literacy in early elementary grades (PK-3).** ***No narrative response required.***

See application attachments for district and charter school Early Literacy Inventory spreadsheets.

2. **What is the name of the funding source for the 25% match for early literacy? (check all that apply)**
   - ☑ General Fund
   - ☐ Student Investment Account (SIA)
   - ☐ State School Fund SSF
   - ☐ Title I
   - ☐ Title II
   - ☐ Title III
   - ☐ Title IV
   - ☐ N/A (less than 50 ADMw, no match required)
   - ☐ Other

3. **If you answered "Other" on #2, please describe below:**
   N/A

4. **Please do your best to mark which of the following categories best describe how you are using your matching funds? (check all that apply)**
   - ☐ Hiring
   - ☑ Purchasing Curricula & Materials
   - ☑ High-Dosage Tutoring
   - ☐ Extended Learning Programs
   - ☑ Professional Development & Coaching
   - ☐ Other purposes

5. **If you answered "Other" on #3, then please describe below:**
   N/A

6. **Select one or more of the following school characteristics that were used to prioritize Early Literacy Funds within your district. Prioritization was determined based on schools that:**
   - ☑ Have the lowest rates of proficiency in literacy of elementary schools in the district;
   - ☑ Identified for comprehensive support and improvement or for targeted support and improvement under the federal Every Student Succeeds Act (P.L. 114-95, 129 Stat. 1802) based in part on literacy score;
   - ☐ Have literacy proficiency rates that have not recovered to pre-pandemic levels;
   - ☑ Have a higher portion of student groups that have historically experienced academic disparities compared to other elementary schools in the district.
   - ☐ N/A if you have only one elementary school

7. **List the elementary schools (and/or schools serving elementary grades) that are receiving Early Literacy Funds or resources, and the approximate percentage of funds that are going towards each. Use Format [School - xx%]. (write N/A if you have only one elementary school)**

PreK	5
Abernethy E.S.	1.5
Access	1.5
Ainsworth E.S.	1.5
Alameda E.S.	1.5
Arleta E.S.	2
Astor K-8	2
Atkinson E.S.	2
Beach E.S.	2
Beverly Cleary K-8	1.5
Boise-Eliot/Humboldt	2
Bridger Creative Science E.S.	1.5
Bridlemile E.S.	1.5
Buckman	2
Capitol Hill E.S.	1.5
Cesar Chavez K-8	3
Chapman E.S.	2
Chief Joseph ES	2
Clark E.S.	2
Creston E.S.	1.5
Dr. Martin Luther King Jr. E.S.	1.5
Duniway E.S.	1.5
Faubion PK-8	2
Forest Park E.S.	1,5
Glencoe E.S.	1.5
Grout E.S.	1.5
Hayhurst E.S.	1.5
Irvington E.S.	2
James John E.S.	2
Kelly E.S.	1.5
Laurelhurst K-8	1.5
Lee E.S.	1.5

Lent	1.5
Lewis E.S.	1.5
Llewellyn E.S.	1.5
Maplewood E.S.	1.5
Markham	1.5
Marysville E.S.	2
Peninsula E.S.	2
Richmond E.S.	1.5
Rieke E.S.	1.5
Rigler E.S	1.5
Rosa Parks E.S.	2
Rose City Park E.S.	1.5
Sabin E.S.	2
Scott E.S.	2
Sitton E.S.	1.5
Skyline K-8	1.5
Stephenson E.S.	1.5
Sunnyside Environmental K-8	1.5
Vernon K-8	2
Vestal E.S.	2
Whitman E.S.	1.5
Winterhaven K-8	1.5
Woodlawn E.S.	1.5
Woodmere E.S.	2
Woodstock E.S.	1.5

ODE sends the Early Literacy grant funds directly to the charter schools. They are not a district passthrough. The question does not apply to charter schools.

Feedback

1. **How can ODE support your continuous improvement process?**

ODE's directives and resources directly impact our ability to serve students. Rising costs, including inflation, employee compensation, and pension obligations, continue to strain our budget, while state funding remains insufficient. The loss of federal pandemic aid has further reduced available resources, making it harder to meet student needs.

At the same time, ODE continues to expand programs and compliance requirements. Even with increased funding, the growing administrative burden limits our capacity to focus on high-leverage, student-centered improvements. With fewer staff available, this is a function of both time and resources. They must be prioritized effectively.

Summer programming has been significantly reduced due to funding constraints. Previously serving 2,200 students across 67 schools at 11 sites, we can now only support 700 students at 16 schools across 4 sites. Despite national recognition for Summer Acceleration Academy, we were excluded from ODE's funding formula, disproportionately impacting focal student populations.

Over the past three years, we have made approximately $105M in budget reductions, while the state adds programs and compliance demands, further straining resources. The excessive application and reporting burdens takes time away from impactful strategies.

To truly support continuous improvement, Oregon must fully fund the Quality Education Model (QEM) and ODE must streamline compliance requirements. Increased funding alone is not enough—reducing administrative burdens and aligning data collection with valid, research-based measures will allow districts to focus on what matters most: improving student outcomes.

Plan Summary

1. **Provide an overview of the plan detailing the key aspects and rationale behind the chosen approach. Describe the vision of the plan and how it addresses strengths and areas for growth identified in the needs assessment, including those specifically related to CTE. Additionally, describe how the plan will work towards addressing the co-developed LPGTs or Local Optional Metrics. (500 words or less)**
   Additional requirement if applying with a sponsored charter: **Please be sure to include information about how the needs assessment informed the plan for each charter if the approach is different from the district's plan or how the charter participated in the planning and development of your district plan. (Additional 250 words or less)**

Grant investments deepen and expand our work to disrupt inequities, foster partnerships and collaboration, and provide inclusive and differentiated learning opportunities. Aligned with our district's continuous improvement plan and our Roadmap for Educational Equity, these investments will directly support our commitment to providing all students with high-quality teaching and learning in every classroom.

Our integrated plan prioritizes investments based on identified needs, centering on enhancing inclusive and joyful learning experiences that ensure all students—especially focal student groups—have access to the resources and supports they need to demonstrate excellence. These priorities align with our needs assessment and community feedback, emphasizing:

- **Early Literacy Achievement**: Strengthening PK-3 reading and writing instruction through high-quality, standards-aligned materials, targeted interventions, and professional learning for educators to support literacy development.

- **K-12 Academic Success**: Expanding access to high-quality instructional materials and strategies, meaningful professional learning for educators, and targeted intervention supports to accelerate learning for students struggling with grade-level content.
- **Attendance and Engagement**: Increasing attendance rates by fostering a sense of belonging and improving school climate.
- **Graduation and Postsecondary Readiness**: Strengthening instruction, equitable grading practices, career-related programming that emphasizes real-world, hands-on learning, and providing credit recovery options.
- **Safe and Supportive Schools**: Expanding access to behavioral, mental health, and wellness supports, while implementing policies and practices to ensure a school environment free from discrimination, harassment, bullying, and retaliation.
- **Culture of Racial Equity & Care**: Cultivating racial equity and care through meaningful engagement with students, families, and community leaders, and implementing culturally responsive strategies across schools and departments.

This plan is a critical component of our district's broader strategic efforts, which are aligned with the PPS Board Goals and ODE LPGTs. We will track and report on key indicators quarterly for internal review and annually for the Board and community. Additionally, we will provide periodic updates specific to these investments as required by ODE's Integrated Guidance

Charter School Plan Summary

In alignment with the district's Integrated Plan strategies, the individual charter school's comprehensive needs assessment directly informed each individual charter school's plan, emphasizing differentiated approaches tailored to the students in each school. The needs assessment process utilized an equity lens to review a variety of engagement strategies employed by individual charter schools. Each charter school developed their individual plan to address the needs of their students.

Each charter's plan outlines the key areas for growth and investment, as listed below.

The Emerson School:
- Improved Communication and Family Engagement
- Tailored Academic Support
- Holistic Well-Being of students

Le Monde French Immersion:
- High Expectations and Rigor
- Social, Emotional, and Physical Well-Being of students

Portland Arthur Academy:
- Small instructional groups focused on ELA and Math
- Create a culture of safety and respect for students

Portland Village School:
- High Expectations and Rigor
- Social, Emotional, and Physical Well-Being of students

The Ivy School:

- High Expectations and Rigor
- Culturally responsive environment
- Social, Emotional, and Physical Well-Being of students

The Cottonwood School:

- Improved communication including parent education, updates to communication platforms, etc…
- Wrap around services addressing holistic needs of students (social, emotional, and physical)

Assurances

- ☑ You will comply with all applicable state and federal civil rights laws, to the effect that no person shall be excluded from participation in, be denied benefits of, or otherwise be subject to discrimination under any program or activity on the basis of race, color, national origin, sex, sexual orientation, marital status, gender identity, religion, age, or disability.
- ☑ You have taken into consideration the Quality Education Commission (QEC).
- ☑ Your proposed expenditures comply with supplement (not supplant) guidance outlined in statute for Federal School Improvement, Perkins, and HSS district/school activities (if applicable).
- ☑ Your student progress and outcome data disaggregated by focal student group (except in cases of fewer than 10 students) was examined during the integrated planning process.
- ☑ Dropout/pushout prevention strategies and activities are applied at every high school within the district, including alternative schools.
- ☑ Each of the SSA plans were reviewed as part of your strategic planning.
- ☑ You have reviewed your early literacy programs to identify areas of alignment with Oregon's Early Literacy Framework: A Strong Foundation for Readers and Writers (K-5) and the applicant's work will align with the definitions included in the Early Literacy Success Initiative.
- ☑ Your literacy assessments, tools, curricula and digital resources are culturally responsive, research-aligned, and reflected in the inventory, including formative and diagnostic tools.
- ☑ You will provide professional development and coaching in research-aligned literacy strategies to teachers and administrators in early elementary grades to improve early literacy instruction.
- ☑ You will provide extended learning programs that use research-aligned literacy strategies to students in early elementary grades by licensed teachers or by qualified tutors.
- ☑ You will provide high-dosage tutoring to students in early elementary grades that integrates reading and writing and that is delivered by a qualified tutor using developmentally appropriate practices.
- ☑ You have a student growth assessment for literacy that produces data that can be disaggregated by focal student group.
- ☑ If literacy funds are used to are used to hire specialists, interventionists, or coaches, they have a literacy-focused licensure endorsement, have advanced training or certification in "research-aligned literacy strategies" and "the science of reading and writing", and their primary role and responsibilities include direct support of students and/or educators.
- ☑ You have, for the purposes of prioritization, determined rates of proficiency using multiple sources of data, including state Language Arts summative assessment data and, for eligible applicants who serve English Language Learners, English Language Proficiency Assessment data.

CONTRACT BETWEEN COTTONWOOD SCHOOL OF CIVICS AND SCIENCE, A STATE SPONSORED CHARTER SCHOOL, AND PORTLAND PUBLIC SCHOOL DISTRICT NO 1J

SECTION 1: AUTHORITY

Pursuant to the "Student Success Act", codified at 2019 Oregon Laws Chapter 122 and as amended from time to time (the "Act"), Multnomah County School District No. 1J (the "District") is authorized to distribute funding from District's allocation of the Student Investment Account (SIA) as described in Section 10, subsection 4, of the Act. The District shall serve as the fiscal agent for The Cottonwood School of Civics and Science, an ODE sponsored Charter School ("Grantee") for Student Investment Account grant funds only. The Grantee will serve as their own fiscal agent for all other funding streams within the Oregon Department of Education's (the "Department" or "ODE") Integrated Plan.

SECTION 2: PURPOSE

The purpose of the programs under which this Grant is issued is to provide Grantee funding to meet students' mental or behavioral health needs and increase academic achievement for students, including reducing academic disparities for students that are economically disadvantaged; have historically experienced academic disparities; and any others as determined by the State Board of Education.

SECTION 3: EFFECTIVE DATE AND DURATION

When all Parties have executed this Grant, and all necessary approvals have been obtained, this Grant shall be effective on the same date (July 1, 2025) as the District's SIA agreement with ODE and, unless terminated earlier in accordance with its terms, shall expire on the same date (June 30, 2027) as the District's agreement with ODE.

SECTION 4: GRANT MANAGERS

4.1 District's Grant Manager is:

Kristin Johnson, Financial Operations Manager, Grant Accounting
501 N. Dixon St.
Portland, OR 97227
503-916-3161
kjohnson5@pps.net

4.2 Grantee's Grant Manager is:

Laura Cartwright
640 S. Bancroft St.
Portland, OR 97239
503-244-1697

lauracartwright@thecottonwoodschool.org

4.3 A Party may designate a new Grant Manger by written notice to the other Party.

SECTION 5: PLAN AND BUDGET

5.1 Grantee shall perform the activities as submitted in the Integrated Programs application including the Integrated Programs Budget for 2025-27, along with their Outcomes and Strategies.

SECTION 6: GRANT FUNDS AND EXCHANGE OF SERVICES

6.1 **Grantee Allocation.** In accordance with the terms and conditions of this Grant, the District shall provide Grantee 100% of the SIA Allocation amount generated by the ADMw attributed to the Grantee and published by ODE in the quarterly SIA Allocations report for the purposes described in Section 2; and District shall pay the Grantee from solely monies available through its District SIA Grant Allocation (the "Funding Source"). Funds received by the Grantee under this Agreement (the "Grant Funds") may be used only for eligible expenditures authorized by this Grant and incurred during the Performance Period.

6.1.1 Administrative Costs. Grantee may not use any of the Grantee's allocation for administrative costs.

6.1.2 The Grantee must establish a separate account for all funds received as part of the Grant.

SECTION 7: DISBURSEMENT GENERALLY

7.1 Disbursement.

7.1.1 District shall disburse Grant Funds by Electronic Funds Transfer within ten (10) business days of District receiving the SIA allocation from ODE.

7.1.2 If District determines that any completed Project activities or documentation are not acceptable in the District's reasonable discretion and that any deficiencies are the responsibility of Grantee, District shall prepare a detailed written description of the deficiencies and will deliver such notice to Grantee, in addition to any other remedies for Default by Grantee under this Agreement. At District's discretion, Grantee shall correct any deficiencies at no cost to District within 30 business days or as otherwise required by District.

7.1.3 All expenses must adhere strictly to ODE guidance and rules adopted by the State Board of Education regarding the allowable uses of SIA grant funds.

7.2 **Conditions Precedent to Disbursement.** District's obligation to disburse Grant Funds to Grantee under this Grant is subject to satisfaction of each of the following conditions precedent:

7.2.1 District has received sufficient funding to allow District, in the exercise of its reasonable administrative discretion, to make the disbursement.

7.2.2 No default as described in Section 12 has occurred.

7.2.3 Grantee's representations and warranties set forth in Section 8 are true and correct on the date of disbursement(s) with the same effect as though made on the date of disbursement.

7.3 **Recovery of Grant Funds.** Any Grant Funds disbursed to Grantee under this Grant that are expended in violation or contravention of one or more of the provisions of this Grant ("Misexpended Funds") or that remain unexpended on the earlier of termination or expiration of this Grant ("Unexpended Funds") must be returned to District. Grantee shall return all Misexpended Funds and Unexpended Funds to District promptly after District's or ODE's written demand, but in any event no later than 30 business days after the District's or ODE's written demand.

7.4 **Duplicate Payment.** Grantee shall not be compensated for, or receive any other form of duplicate, overlapping or multiple payments for the same costs financed by or costs and expenses paid for by Grant Funds from any agency of the State of Oregon or the United States of America or any other party, organization or individual.

SECTION 8: REPRESENTATIONS AND WARRANTIES

8.1 **Organization/Authority.** Grantee represents and warrants to District that:

8.1.1 Grantee is an Oregon Nonprofit Corporation duly organized and validly existing under the laws of the State of Oregon, is eligible to receive the Grant Funds and has full power, authority and legal right to make this Grant and to incur and perform its obligations hereunder;

8.1.2 The making and performance by Grantee of this Grant (a) have been duly authorized by Grantee, (b) do not and will not violate any provision of any applicable law, rule, regulation, or order of any court, regulatory commission, board, or other administrative agency or any provision of Grantee's Articles of Incorporation or Bylaws; and (c) do not and will not result in the breach of, or constitute a default or require any consent under any other agreement or instrument to which Grantee is a party or by which Grantee or any of its properties may be bound or affected. No authorization, consent, license, approval of, or filing or registration with or notification to any governmental body or regulatory or supervisory authority is required for the execution, delivery or performance by Grantee of this Grant, other than those that have already been obtained;

8.1.3 This Grant has been duly executed and delivered by Grantee and constitutes a legal, valid and binding obligation of Grantee enforceable in accordance with its terms;

8.1.4 Grantee is, and throughout the Performance Period will be, in compliance with its charter agreement and all Oregon laws applicable to charter schools operating in the State of Oregon including, without limitation, ORS 338.035, as reported by ODE, which is the school's sponsor; and

8.1.5 The representations and warranties set forth in this section are in addition to, and not in lieu of, any other representations or warranties provided by Grantee.

SECTION 9: GOVERNING LAW, CONSENT TO JURISDICTION

This Grant shall be governed by and construed in accordance with the laws of the State of Oregon without regard to principles of conflicts of law. Any claim, action, suit or proceeding (collectively "Claim") between District or any other agency or department of the State of Oregon, or both, and Grantee that arises from or relates to this Grant shall be brought and conducted solely and exclusively within the Circuit Court of Multnomah County for the State of Oregon; provided, however, if a Claim must be brought in a federal forum, then it shall be brought and conducted solely and exclusively within the United States District Court for the District of Oregon. In no event shall this Section be construed as a waiver by the State of Oregon of any form of defense or immunity, whether sovereign immunity, governmental immunity, immunity based on the eleventh amendment to the Constitution of the United States or otherwise, to or from any Claim or from the jurisdiction of any court. Grantee, BY EXECUTION OF THIS GRANT, HEREBY CONSENTS TO THE IN PERSONAM JURISDICTION OF SAID COURTS.

SECTION 10: ACCOUNTABILITY AND REPORTING

10.1 Grantee will identify longitudinal performance growth targets (the "Targets") in accordance with the guidance published by the Department. In addition to those Targets required by the Act, Grantee may identify local Targets.

10.2 Grantee will follow the reporting timeline as indicated by the Department.

SECTION 11: INDEMNIFICATION

11.1 Grantee shall defend, save, hold harmless, and indemnify the District and its officers, directors, employees and agents from and against all claims, suits, actions, losses, damages, liabilities, costs, and expenses of any nature whatsoever, including attorney's fees, resulting from, arising out of, or relating to the activities of Grantee or its officers, directors, employees, subcontractors, or agents under this Grant (each of the foregoing individually or collectively a "Claim" for purposes of this section).

SECTION 12: DEFAULT

12.1 **Grantee.** Grantee will be in default under this Grant upon the occurrence of any of the

following events as determined by District or by school's sponsor (ODE):

12.1.1 Grantee fails to perform, observe or discharge any of its covenants, agreements, or obligations under this Grant or required by the State of Oregon, including but not limited to its financial accounting or reporting requirements under this Grant.

12.1.2 Grantee uses or expends Grant Funds for any purpose other than that defined in this Grant.

12.2 **District.** District will be in default under this Grant if District fails to perform, observe or discharge any of its covenants, agreements, or obligations under this Grant.

SECTION 13: REMEDIES

13.1 **District Remedies.** In the event Grantee is in default under Section 12, District may, at its option, pursue any or all of the remedies available to it under this Grant and at law or in equity, including, but not limited to (a) termination of this Grant under Section 16, (b) reducing or withholding payment for Project activities that Grantee has failed to complete according to the Act, (c) requiring Grantee to complete, at Grantee's expense, additional activities necessary to satisfy its obligations or meet performance standards under this Grant, (d) withholding payment of State School Funds, (e) repayment of unused or inappropriately used Grant funds, including exercise of its right of recovery of overpayments under Section 14 of this Grant or setoff, or both. These remedies are cumulative to the extent the remedies are not inconsistent, and District may pursue any remedy or remedies singly, collectively, successively or in any order whatsoever.

13.2 **Grantee Remedies.** In the event District is in default under Section 12 and whether or not Grantee elects to exercise its right to terminate this Grant under Section 16.3.2, Grantee's remedy may be exercised through any dispute provisions in this agreement.

SECTION 14: RECOVERY OF OVERPAYMENTS

If payments to Grantee under this Grant, or any other agreement between District and Grantee, exceed the amount to which Grantee is entitled, District may, after notifying Grantee in writing, withhold from payments due Grantee under this Grant or other agreement between District and Grantee, such amounts, over such periods of times, as are necessary to recover the amount of the overpayment.

SECTION 15: LIMITATION OF LIABILITY

EXCEPT FOR LIABILITY ARISING UNDER OR RELATED TO SECTION 11, NEITHER PARTY WILL BE LIABLE TO THE OTHER FOR INCIDENTAL, CONSEQUENTIAL, OR OTHER INDIRECT DAMAGES ARISING OUT OF OR RELATED TO THIS GRANT, REGARDLESS OF WHETHER THE LIABILITY CLAIM IS BASED IN CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, PRODUCT LIABILITY OR OTHERWISE. NEITHER PARTY WILL BE LIABLE TO THE OTHER FOR ANY DAMAGES OF ANY SORT ARISING SOLELY FROM THE TERMINATION OF THIS

GRANT IN ACCORDANCE WITH ITS TERMS.

SECTION 16: TERMINATION

16.1 **Mutual.** This Grant may be terminated at any time by mutual written consent of the Parties.

16.2 **By District.** District may terminate this Grant as follows:

16.2.1 Upon 30 days advance written notice to Grantee, which notice Grantee will within 5 business days provide to its sponsor (ODE);

16.2.2 Immediately upon written notice to Grantee, if District fails to receive funding, or allocations, or other expenditure authority at levels sufficient in District's reasonable administrative discretion, to perform its obligations under this Grant;

16.2.3 Immediately upon written notice to Grantee, if federal or state laws, rules, regulations or guidelines are modified or interpreted in such a way that the District's performance under this Grant is prohibited or District is prohibited from paying for such performance from the planned funding source;

16.2.4 Immediately upon written notice to Grantee, if Grantee is in default under this Grant and such default remains uncured 30 days after written notice thereof to Grantee; or

16.2.5 As otherwise expressly provided in this Grant.

16.3 **By Grantee.** Grantee may terminate this Grant as follows:

16.3.1 Upon 30 days advance written notice to District;

16.3.2 Immediately upon written notice to District, if District is in default under this Grant and such default remains uncured 30 days after written notice thereof to District; or

16.3.3 As otherwise expressly provided in this Grant.

16.4 **Cease Activities.** Upon receiving a notice of termination of this Grant, Grantee will immediately cease all activities under this Grant, unless District expressly directs otherwise in such notice. Upon termination, Grantee will deliver to District all documents, information, and reports related to the Grant.

SECTION 17: INSURANCE

Grantee shall maintain insurance set forth in the charter contract and any necessary insurance to cover activities related to the Project as reasonably determined by the District or its sponsor (ODE).

SECTION 18: NONAPPROPRIATION

District's obligation to pay any amounts and otherwise perform its duties under this Grant is conditioned upon District receiving funding, appropriations, limitations, allocations, or other expenditure authority sufficient to allow District, in the exercise of its reasonable administrative discretion, to meet its obligations under this Grant.

SECTION 19: AMENDMENTS

The terms of this Grant may not be altered, modified, supplemented or otherwise amended, except by written agreement of the Parties.

SECTION 20: NOTICE

Except as otherwise expressly provided in this Grant, any notices to be given relating to this Grant must be given in writing by facsimile, email, personal delivery, or postage prepaid mail, to a Party's Grant Manager at the physical address, fax number or email address set forth in this Grant, or to such other addresses as either Party may indicate pursuant to this Section 20. Any notice so addressed and mailed becomes effective five (5) days after mailing. Any notice given by personal delivery becomes effective when actually delivered. Any notice given by email becomes effective upon the sender's receipt of confirmation generated by the recipient's email system that the notice has been received by the recipient's email system. Any notice given by facsimile becomes effective upon electronic confirmation of successful transmission to the designated fax number.

SECTION 21: SEVERABILITY

The Parties agree that if any term or provision of this Grant is declared by a court of competent jurisdiction to be illegal or in conflict with any law, the validity of the remaining terms and provisions will not be affected, and the rights and obligations of the Parties will be construed and enforced as if the Grant did not contain the particular term or provision held to be invalid.

SECTION 22: COUNTERPARTS

This Grant may be executed in several counterparts, all of which when taken together shall constitute one agreement, notwithstanding that all Parties are not signatories to the same counterpart. Each copy of the Grant so executed constitutes an original.

SECTION 23: COMPLIANCE WITH LAW

In connection with their activities under this Grant, the Parties shall comply with all applicable

federal, state and local laws.

SECTION 24: INTENDED BENEFICIARIES

District and Grantee are the only parties to this Grant and are the only parties entitled to enforce its terms. Nothing in this Grant provides, is intended to provide, or may be construed to provide any direct or indirect benefit or right to third parties unless such third parties are individually identified by name herein and expressly described as intended beneficiaries of this Grant.

SECTION 25: TIME IS OF THE ESSENCE

Time is of the essence in Grantee's performance of the Project activities under this Grant.

SECTION 26: MERGER, WAIVER

This Grant and all exhibits and attachments, if any, constitute the entire agreement between the Parties on the subject matter hereof. There are no understandings, agreements, or representations, oral or written, not specified herein regarding this Grant. No waiver or consent under this Grant binds either Party unless in writing and signed by both Parties. Such waiver or consent, if made, is effective only in the specific instance and for the specific purpose given. EACH PARTY, BY SIGNATURE OF ITS AUTHORIZED REPRESENTATIVE, HEREBY ACKNOWLEDGES THAT IT HAS READ THIS GRANT, UNDERSTANDS IT, AND AGREES TO BE BOUND BY ITS TERMS AND CONDITIONS.

SECTION 27: RECORDS MAINTENANCE, MUNICIPAL AUDIT, AND ACCESS

Grantee shall maintain all financial records relating to this Grant in accordance with generally accepted accounting principles. In addition, Grantee shall maintain any other records, books, documents, papers, plans, records of shipments and payments, and writings of Grantee, whether in paper, electronic or other form, that are pertinent to this Grant in such a manner as to clearly document Grantee performance. All financial records, other records, books, documents, papers, plans, records of shipments and payments, and writings of Grantee, whether in paper, electronic or other form, that are pertinent to this Grant, are collectively referred to as "Records." Grantee acknowledges and agrees that District, Grantee's sponsor (ODE), and the Oregon Secretary of State's Office and their duly authorized representatives will have access to all Records to perform examinations and audits and make excerpts and transcripts. All Funds received by Grantee as part of the Grant shall be accounted for separately and included in the Grantee's municipal audit according to ORS 338.095 and reported to ODE as Grantee's sponsor annually. Grantee shall retain and keep accessible all Records for a minimum of five (5) years, or such longer period as may be required by applicable law, following termination of this Grant, or until the conclusion of any audit, controversy or litigation arising out of or related to this Grant,

whichever date is later.

SECTION 28: HEADINGS

The headings and captions to sections of this Grant have been inserted for identification and reference purposes only and may not be used to construe the meaning or to interpret this Grant.

SECTION 29: GRANT DOCUMENTS

This Grant consists of the following documents, which are listed in descending order of precedence: [INSERT relevant documents as needed]

SECTION 30: SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Grant as of the dates set forth below.

MULTNOMAH COUNTY SCHOOL DISTRICT NO. 1J

By: Erica Kreger, Contracts Manager 4/4/25

School District Representative Date

Printed Name, Title

Cottonwood School of Civics and

Science By:

Signature of Charter School Representative

Laura Cartwright

Date 4/3/2025

Printed Name, Title

Laura Cartwright, Academic Director/Acting
Executive Director

CONTRACT BETWEEN THE EMERSON CHARTER SCHOOL AND PORTLAND PUBLIC SCHOOL DISTRICT NO 1J

SECTION 1: AUTHORITY

Pursuant to the "Student Success Act", codified at 2019 Oregon Laws Chapter 122 and as amended from time to time (the "Act"), Multnomah County School District No. 1J (the "District") is authorized to distribute funding from District's allocation of the Student Investment Account (SIA) as described in Section 10, subsection 4, of the Act. The District shall serve as the fiscal agent for The Emerson School ("Grantee") for Student Investment Account grant funds only. The Grantee will serve as their own fiscal agent for all other funding streams within the Oregon Department of Education's (the "Department" or "ODE") Integrated Plan.

SECTION 2: PURPOSE

The purpose of the programs under which this Grant is issued is to provide Grantee funding to meet students' mental or behavioral health needs and increase academic achievement for students, including reducing academic disparities for students that are economically disadvantaged; have historically experienced academic disparities; and any others as determined by the State Board of Education.

SECTION 3: EFFECTIVE DATE AND DURATION

When all Parties have executed this Grant, and all necessary approvals have been obtained, this Grant shall be effective on the same date (July 1, 2025) as the District's SIA agreement with ODE and, unless terminated earlier in accordance with its terms, shall expire on the same date (June 30, 2027) as the District's agreement with ODE.

SECTION 4: GRANT MANAGERS

4.1 District's Grant Manager is:

Kristin Johnson, Financial Operations Manager, Grant Accounting
501 N. Dixon St.
Portland, OR 97227
503-916-3161
kjohnson5@pps.net

4.2 Grantee's Grant Manager is:

Amanda McAdoo, School Administrator
1800 SW 1st Avenue Suite #1
Portland, OR 97201
503-525-6124
amanda@emersonschool.org

4.3 A Party may designate a new Grant Manger by written notice to the other Party.

SECTION 5: PLAN AND BUDGET

5.1 Grantee shall perform the activities as submitted in the Integrated Programs application including the Integrated Programs Budget for 2025-27, along with their Outcomes and Strategies.

SECTION 6: GRANT FUNDS AND EXCHANGE OF SERVICES

6.1 **Grantee Allocation.** In accordance with the terms and conditions of this Grant, the District shall provide Grantee 100% of the SIA Allocation amount generated by the ADMw attributed to the Grantee and published by ODE in the Extended ADMw reports for the most recent *closed school year* for the purposes described in Section 2; and District shall pay the Grantee from solely monies available through its District SIA Grant Allocation (the "Funding Source"). Funds received by the Grantee under this Agreement (the "Grant Funds") may be used only for eligible expenditures authorized by this Grant and incurred during the Performance Period. *(Note: "closed school year" refers to 2023-24 for the 2025-26 SIA allocations and 2024-25 for the 2026-27 SIA allocations.)*

6.1.1 Administrative Rate. Grantee may not use any of the Grantee's allocation for administrative costs.

6.1.2 The Grantee must establish a separate account for all funds received as part of the Grant.

SECTION 7: DISBURSEMENT GENERALLY

7.1 Disbursement.

7.1.1 District shall disburse Grant Funds by Electronic Funds Transfer within ten (10) business days of District receiving the SIA allocation from ODE.

7.1.2 If District determines that any completed Project activities or documentation are not acceptable in the District's reasonable discretion and that any deficiencies are the responsibility of Grantee, District shall prepare a detailed written description of the deficiencies and will deliver such notice to Grantee, in addition to any other remedies for Default by Grantee under this Agreement. At District's discretion, Grantee shall correct any deficiencies at no cost to District within 30 business days or as otherwise required by District.

7.1.3 All expenses must adhere strictly to ODE guidance and rules adopted by the State Board of Education regarding the allowable uses of SIA grant funds.

7.2 **Conditions Precedent to Disbursement.** District's obligation to disburse Grant Funds to Grantee under this Grant is subject to satisfaction of each of the following conditions precedent:

7.2.1 District has received sufficient funding to allow District, in the exercise of its reasonable administrative discretion, to make the disbursement.

7.2.2 No default as described in Section 12 has occurred.

7.2.3 Grantee's representations and warranties set forth in Section 8 are true and correct on the date of disbursement(s) with the same effect as though made on the date of disbursement.

7.3 **Recovery of Grant Funds.** Any Grant Funds disbursed to Grantee under this Grant that are expended in violation or contravention of one or more of the provisions of this Grant ("Misexpended Funds") or that remain unexpended on the earlier of termination or expiration of this Grant ("Unexpended Funds") must be returned to District. Grantee shall return all Misexpended Funds and Unexpended Funds to District promptly after District's written demand, but in any event no later than 30 business days after the District's written demand.

7.4 **Duplicate Payment.** Grantee shall not be compensated for, or receive any other form of duplicate, overlapping or multiple payments for the same costs financed by or costs and expenses paid for by Grant Funds from any agency of the State of Oregon or the United States of America or any other party, organization or individual.

SECTION 8: REPRESENTATIONS AND WARRANTIES

8.1 **Organization/Authority.** Grantee represents and warrants to District that:

8.1.1 Grantee is an Oregon Nonprofit Corporation duly organized and validly existing under the laws of the State of Oregon, is eligible to receive the Grant Funds and has full power, authority and legal right to make this Grant and to incur and perform its obligations hereunder;

8.1.2 The making and performance by Grantee of this Grant (a) have been duly authorized by Grantee, (b) do not and will not violate any provision of any applicable law, rule, regulation, or order of any court, regulatory commission, board, or other administrative agency or any provision of Grantee's Articles of Incorporation or Bylaws; and (c) do not and will not result in the breach of, or constitute a default or require any consent under any other agreement or instrument to which Grantee is a party or by which Grantee or any of its properties may be bound or affected. No authorization, consent, license, approval of, or filing or registration with or notification to any governmental body or regulatory or supervisory authority is required for the execution, delivery or performance by Grantee of this Grant, other than those that have already been obtained;

8.1.3 This Grant has been duly executed and delivered by Grantee and constitutes a legal, valid and binding obligation of Grantee enforceable in accordance with its terms;

8.1.4 Grantee is, and throughout the Performance Period will be, in compliance with its charter agreement and all Oregon laws applicable to charter schools operating in the State of Oregon including, without limitation, ORS 338.035; and

8.1.5 The representations and warranties set forth in this section are in addition to, and not in lieu of, any other representations or warranties provided by Grantee.

SECTION 9: GOVERNING LAW, CONSENT TO JURISDICTION

This Grant shall be governed by and construed in accordance with the laws of the State of Oregon without regard to principles of conflicts of law. Any claim, action, suit or proceeding (collectively "Claim") between District or any other agency or department of the State of Oregon, or both, and Grantee that arises from or relates to this Grant shall be brought and conducted solely and exclusively within the Circuit Court of Multnomah County for the State of Oregon; provided, however, if a Claim must be brought in a federal forum, then it shall be brought and conducted solely and exclusively within the United States District Court for the District of Oregon. In no event shall this Section be construed as a waiver by the State of Oregon of any form of defense or immunity, whether sovereign immunity, governmental immunity, immunity based on the eleventh amendment to the Constitution of the United States or otherwise, to or from any Claim or from the jurisdiction of any court. Grantee, BY EXECUTION OF THIS GRANT, HEREBY CONSENTS TO THE IN PERSONAM JURISDICTION OF SAID COURTS.

SECTION 10: ACCOUNTABILITY AND REPORTING

10.1 Grantee will identify longitudinal performance growth targets (the "Targets") in accordance with the guidance published by the Department. In addition to those Targets required by the Act, Grantee may identify local Targets.

10.2 Grantee will follow the reporting timeline as indicated by the Department.

SECTION 11: INDEMNIFICATION

11.1 Grantee shall defend, save, hold harmless, and indemnify the District and its officers, directors, employees and agents from and against all claims, suits, actions, losses, damages, liabilities, costs, and expenses of any nature whatsoever, including attorney's fees, resulting from, arising out of, or relating to the activities of Grantee or its officers, directors, employees, subcontractors, or agents under this Grant (each of the foregoing individually or collectively a "Claim" for purposes of this section).

SECTION 12: DEFAULT

12.1 **Grantee.** Grantee will be in default under this Grant upon the occurrence of any of the following events:

12.1.1 Grantee fails to perform, observe or discharge any of its covenants, agreements, or obligations under this Grant or required by the State of Oregon, including but not limited to its financial accounting or reporting requirements under this Grant.

12.1.2 Grantee uses or expends Grant Funds for any purpose other than that defined in this Grant.

12.2 **District.** District will be in default under this Grant if District fails to perform, observe or discharge any of its covenants, agreements, or obligations under this Grant.

SECTION 13: REMEDIES

13.1 **District Remedies.** In the event Grantee is in default under Section 12, District may, at its option, pursue any or all of the remedies available to it under this Grant and at law or in equity, including, but not limited to (a) termination of this Grant under Section 16, (b) reducing or withholding payment for Project activities that Grantee has failed to complete according to the Act, (c) requiring Grantee to complete, at Grantee's expense, additional activities necessary to satisfy its obligations or meet performance standards under this Grant, (d) withholding payment of State School Funds, (e) repayment of unused or inappropriately used Grant funds, including exercise of its right of recovery of overpayments under Section 14 of this Grant or setoff, or both, and/or (g) pursue termination of the charter contract as per ORS 338.105. These remedies are cumulative to the extent the remedies are not inconsistent, and District may pursue any remedy or remedies singly, collectively, successively or in any order whatsoever.

13.2 **Grantee Remedies.** In the event District is in default under Section 12 and whether or not Grantee elects to exercise its right to terminate this Grant under Section 16.3.2, Grantee's remedy may be exercised through any dispute provisions in this agreement or in the current executed charter contract.

SECTION 14: RECOVERY OF OVERPAYMENTS

If payments to Grantee under this Grant, or any other agreement between District and Grantee, exceed the amount to which Grantee is entitled, District may, after notifying Grantee in writing, withhold from payments due Grantee under this Grant or other agreement between District and Grantee, such amounts, over such periods of times, as are necessary to recover the amount of the overpayment.

SECTION 15: LIMITATION OF LIABILITY

EXCEPT FOR LIABILITY ARISING UNDER OR RELATED TO SECTION 11, NEITHER PARTY WILL BE LIABLE TO THE OTHER FOR INCIDENTAL, CONSEQUENTIAL, OR OTHER INDIRECT DAMAGES ARISING OUT OF OR RELATED TO THIS GRANT, REGARDLESS OF WHETHER THE LIABILITY CLAIM IS BASED IN CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, PRODUCT LIABILITY OR OTHERWISE. NEITHER PARTY WILL BE LIABLE TO THE OTHER FOR ANY DAMAGES OF ANY SORT ARISING SOLELY FROM THE TERMINATION OF THIS GRANT IN ACCORDANCE WITH ITS TERMS.

SECTION 16: TERMINATION

16.1 **Mutual.** This Grant may be terminated at any time by mutual written consent of the Parties.

16.2 **By District.** District may terminate this Grant as follows:

16.2.1 Upon 30 days advance written notice to Grantee;

16.2.2 Immediately upon written notice to Grantee, if District fails to receive funding, or allocations, or other expenditure authority at levels sufficient in District's reasonable administrative discretion, to perform its obligations under this Grant;

16.2.3 Immediately upon written notice to Grantee, if federal or state laws, rules, regulations or guidelines are modified or interpreted in such a way that the District's performance under this Grant is prohibited or District is prohibited from paying for such performance from the planned funding source;

16.2.4 Immediately upon written notice to Grantee, if Grantee is in default under this Grant and such default remains uncured 30 days after written notice thereof to Grantee; or

16.2.5 As otherwise expressly provided in this Grant.

16.3 **By Grantee.** Grantee may terminate this Grant as follows:

16.3.1 Upon 30 days advance written notice to District;

16.3.2 Immediately upon written notice to District, if District is in default under this Grant and such default remains uncured 30 days after written notice thereof to District; or

16.3.3 As otherwise expressly provided in this Grant.

16.4 **Cease Activities.** Upon receiving a notice of termination of this Grant, Grantee will immediately cease all activities under this Grant, unless District expressly directs otherwise in such notice. Upon termination, Grantee will deliver to District all documents, information, and reports related to the Grant.

SECTION 17: INSURANCE

Grantee shall maintain insurance set forth in the charter contract and any necessary insurance to cover activities related to the Project as reasonably determined by the District.

SECTION 18: NONAPPROPRIATION

District's obligation to pay any amounts and otherwise perform its duties under this Grant is conditioned upon District receiving funding, appropriations, limitations, allocations, or other expenditure authority sufficient to allow District, in the exercise of its reasonable administrative discretion, to meet its obligations under this Grant.

SECTION 19: AMENDMENTS

The terms of this Grant may not be altered, modified, supplemented or otherwise amended, except by written agreement of the Parties.

SECTION 20: NOTICE

Except as otherwise expressly provided in this Grant, any notices to be given relating to this Grant must be given in writing by facsimile, email, personal delivery, or postage prepaid mail, to a Party's Grant Manager at the physical address, fax number or email address set forth in this Grant, or to such other addresses as either Party may indicate pursuant to this Section 20. Any notice so addressed and mailed becomes effective five (5) days after mailing. Any notice given by personal delivery becomes effective when actually delivered. Any notice given by email becomes effective upon the sender's receipt of confirmation generated by the recipient's email system that the notice has been received by the recipient's email system. Any notice given by facsimile becomes effective upon electronic confirmation of successful transmission to the designated fax number.

SECTION 21: SEVERABILITY

The Parties agree that if any term or provision of this Grant is declared by a court of competent jurisdiction to be illegal or in conflict with any law, the validity of the remaining terms and provisions will not be affected, and the rights and obligations of the Parties will be construed and enforced as if the Grant did not contain the particular term or provision held to be invalid.

SECTION 22: COUNTERPARTS

This Grant may be executed in several counterparts, all of which when taken together shall constitute one agreement, notwithstanding that all Parties are not signatories to the same counterpart. Each copy of the Grant so executed constitutes an original.

SECTION 23: COMPLIANCE WITH LAW

In connection with their activities under this Grant, the Parties shall comply with all applicable federal, state and local laws.

SECTION 24: INTENDED BENEFICIARIES

District and Grantee are the only parties to this Grant and are the only parties entitled to enforce its terms. Nothing in this Grant provides, is intended to provide, or may be construed to provide any direct or indirect benefit or right to third parties unless such third parties are individually identified by name herein and expressly described as intended beneficiaries of this Grant.

SECTION 25: TIME IS OF THE ESSENCE

Time is of the essence in Grantee's performance of the Project activities under this Grant.

SECTION 26: MERGER, WAIVER

This Grant and all exhibits and attachments, if any, constitute the entire agreement between the Parties on the subject matter hereof. There are no understandings, agreements, or representations, oral or written, not specified herein regarding this Grant. No waiver or consent under this Grant binds either Party unless in writing and signed by both Parties. Such waiver or consent, if made, is effective only in the specific instance and for the specific purpose given. EACH PARTY, BY SIGNATURE OF ITS AUTHORIZED REPRESENTATIVE, HEREBY ACKNOWLEDGES THAT IT HAS READ THIS GRANT, UNDERSTANDS IT, AND AGREES TO BE BOUND BY ITS TERMS AND CONDITIONS.

SECTION 27: RECORDS MAINTENANCE, MUNICIPAL AUDIT, AND ACCESS

Grantee shall maintain all financial records relating to this Grant in accordance with generally accepted accounting principles. In addition, Grantee shall maintain any other records, books, documents, papers, plans, records of shipments and payments, and writings of Grantee, whether in paper, electronic or other form, that are pertinent to this Grant in such a manner as to clearly document Grantee performance. All financial records, other records, books, documents, papers, plans, records of shipments and payments, and writings of Grantee, whether in paper, electronic or other form, that are pertinent to this Grant, are collectively referred to as "Records." Grantee acknowledges and agrees that District and the Oregon Secretary of State's Office and their duly authorized representatives will have access to all Records to perform examinations and audits and make excerpts and transcripts. All Funds received by Grantee as part of the Grant shall be accounted for separately and included in the Grantee's municipal audit according to ORS 338.095 and reported to District annually. Grantee shall retain and keep accessible all Records for a minimum of five (5) years, or such longer period as may be required by applicable law, following termination of this Grant, or until the conclusion of any audit, controversy or litigation arising out of or related to this Grant, whichever date is later.

SECTION 28: HEADINGS

The headings and captions to sections of this Grant have been inserted for identification and reference purposes only and may not be used to construe the meaning or to interpret this Grant.

SECTION 29: GRANT DOCUMENTS

This Grant consists of the following documents, which are listed in descending order of precedence: [INSERT relevant documents as needed]

SECTION 30: SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Grant as of the dates set forth below.

MULTNOMAH COUNTY SCHOOL DISTRICT NO. 1J

By: _____ 4/4/25

School District Representative — Date

Contracts Manager, Portland Public Schools

Printed Name, Title

The Emerson Charter School

By: _____

Signature of Charter School Representative

4/4/2025

Date

Amanda McAdoo, Administrator

Printed Name, Title

CONTRACT BETWEEN IVY CHARTER SCHOOL, A STATE-SPONSORED CHARTER SCHOOL, AND PORTLAND PUBLIC SCHOOL DISTRICT NO 1J

SECTION 1: AUTHORITY

Pursuant to the "Student Success Act", codified at 2019 Oregon Laws Chapter 122 and as amended from time to time (the "Act"), Multnomah County School District No. 1J (the "District") is authorized to distribute funding from District's allocation of the Student Investment Account (SIA) as described in Section 10, subsection 4, of the Act. The District shall serve as the fiscal agent for Ivy Charter School, an ODE sponsored Charter School ("Grantee") for Student Investment Account grant funds only. The Grantee will serve as their own fiscal agent for all other funding streams within the Oregon Department of Education's (the "Department" or "ODE") Integrated Plan.

SECTION 2: PURPOSE

The purpose of the programs under which this Grant is issued is to provide Grantee funding to meet students' mental or behavioral health needs and increase academic achievement for students, including reducing academic disparities for students that are economically disadvantaged; have historically experienced academic disparities; and any others as determined by the State Board of Education.

SECTION 3: EFFECTIVE DATE AND DURATION

When all Parties have executed this Grant, and all necessary approvals have been obtained, this Grant shall be effective on the same date (July 1, 2025) as the District's SIA agreement with ODE and, unless terminated earlier in accordance with its terms, shall expire on the same date (June 30, 2027) as the District's agreement with ODE.

SECTION 4: GRANT MANAGERS

4.1 District's Grant Manager is:

Kristin Johnson, Financial Operations Manager, Grant Accounting
501 N. Dixon St.
Portland, OR 97227
503-916-3161
kjohnson5@pps.net

4.2 Grantee's Grant Manager is:

Nikki Jones
5420 N. Interstate Avenue
Portland, OR 97217
503-288-8553
nikki.mitchell@theivyschool.org

4.3 A Party may designate a new Grant Manger by written notice to the other Party.

SECTION 5: PLAN AND BUDGET

5.1 Grantee shall perform the activities as submitted in the Integrated Programs application including the Integrated Programs Budget for 2025-27, along with their Outcomes and Strategies.

SECTION 6: GRANT FUNDS AND EXCHANGE OF SERVICES

6.1 **Grantee Allocation.** In accordance with the terms and conditions of this Grant, the District shall provide Grantee 100% of the SIA Allocation amount generated by the ADMw attributed to the Grantee and published by ODE in the quarterly SIA Allocations report for the purposes described in Section 2; and District shall pay the Grantee from solely monies available through its District SIA Grant Allocation (the "Funding Source"). Funds received by the Grantee under this Agreement (the "Grant Funds") may be used only for eligible expenditures authorized by this Grant and incurred during the Performance Period.

6.1.1 **Administrative Costs**. Grantee may not use any of the Grantee's allocation for administrative costs.

6.1.2 The Grantee must establish a separate account for all funds received as part of the Grant.

SECTION 7: DISBURSEMENT GENERALLY

7.1 Disbursement.

7.1.1 District shall disburse Grant Funds by Electronic Funds Transfer within ten (10) business days of District receiving the SIA allocation from ODE.

7.1.2 If District determines that any completed Project activities or documentation are not acceptable in the District's reasonable discretion and that any deficiencies are the responsibility of Grantee, District shall prepare a detailed written description of the deficiencies and will deliver such notice to Grantee, in addition to any other remedies for Default by Grantee under this Agreement. At District's discretion, Grantee shall correct any deficiencies at no cost to District within 30 business days or as otherwise required by District.

7.1.3 All expenses must adhere strictly to ODE guidance and rules adopted by the State Board of Education regarding the allowable uses of SIA grant funds.

7.2 **Conditions Precedent to Disbursement.** District's obligation to disburse Grant Funds to Grantee under this Grant is subject to satisfaction of each of the following conditions precedent:

7.2.1 District has received sufficient funding to allow District, in the exercise of its reasonable administrative discretion, to make the disbursement.

7.2.2 No default as described in Section 12 has occurred.

7.2.3 Grantee's representations and warranties set forth in Section 8 are true and correct on the date of disbursement(s) with the same effect as though made on the date of disbursement.

7.3 **Recovery of Grant Funds.** Any Grant Funds disbursed to Grantee under this Grant that are expended in violation or contravention of one or more of the provisions of this Grant ("Misexpended Funds") or that remain unexpended on the earlier of termination or expiration of this Grant ("Unexpended Funds") must be returned to District. Grantee shall return all Misexpended Funds and Unexpended Funds to District promptly after District's or ODE's written demand, but in any event no later than 30 business days after the District's or ODE's written demand.

7.4 **Duplicate Payment.** Grantee shall not be compensated for, or receive any other form of duplicate, overlapping or multiple payments for the same costs financed by or costs and expenses paid for by Grant Funds from any agency of the State of Oregon or the United States of America or any other party, organization or individual.

SECTION 8: REPRESENTATIONS AND WARRANTIES

8.1 **Organization/Authority.** Grantee represents and warrants to District that:

8.1.1 Grantee is an Oregon Nonprofit Corporation duly organized and validly existing under the laws of the State of Oregon, is eligible to receive the Grant Funds and has full power, authority and legal right to make this Grant and to incur and perform its obligations hereunder;

8.1.2 The making and performance by Grantee of this Grant (a) have been duly authorized by Grantee, (b) do not and will not violate any provision of any applicable law, rule, regulation, or order of any court, regulatory commission, board, or other administrative agency or any provision of Grantee's Articles of Incorporation or Bylaws; and (c) do not and will not result in the breach of, or constitute a default or require any consent under any other agreement or instrument to which Grantee is a party or by which Grantee or any of its properties may be bound or affected. No authorization, consent, license, approval of, or filing or registration with or notification to any governmental body or regulatory or supervisory authority is required for the execution, delivery or performance by Grantee of this Grant, other than those that have already been obtained;

8.1.3 This Grant has been duly executed and delivered by Grantee and constitutes a legal, valid and binding obligation of Grantee enforceable in accordance with its terms;

8.1.4 Grantee is, and throughout the Performance Period will be, in compliance with its charter agreement and all Oregon laws applicable to charter schools operating in the State of Oregon including, without limitation, ORS 338.035, as reported by ODE, which is the school's sponsor; and

8.1.5 The representations and warranties set forth in this section are in addition to, and not in lieu of, any other representations or warranties provided by Grantee.

SECTION 9: GOVERNING LAW, CONSENT TO JURISDICTION

This Grant shall be governed by and construed in accordance with the laws of the State of Oregon without regard to principles of conflicts of law. Any claim, action, suit or proceeding (collectively "Claim") between District or any other agency or department of the State of Oregon, or both, and Grantee that arises from or relates to this Grant shall be brought and conducted solely and exclusively within the Circuit Court of Multnomah County for the State of Oregon; provided, however, if a Claim must be brought in a federal forum, then it shall be brought and conducted solely and exclusively within the United States District Court for the District of Oregon. In no event shall this Section be construed as a waiver by the State of Oregon of any form of defense or immunity, whether sovereign immunity, governmental immunity, immunity based on the eleventh amendment to the Constitution of the United States or otherwise, to or from any Claim or from the jurisdiction of any court. Grantee, BY EXECUTION OF THIS GRANT, HEREBY CONSENTS TO THE IN PERSONAM JURISDICTION OF SAID COURTS.

SECTION 10: ACCOUNTABILITY AND REPORTING

10.1 Grantee will identify longitudinal performance growth targets (the "Targets") in accordance with the guidance published by the Department. In addition to those Targets required by the Act, Grantee may identify local Targets.

10.2 Grantee will follow the reporting timeline as indicated by the Department.

SECTION 11: INDEMNIFICATION

11.1 Grantee shall defend, save, hold harmless, and indemnify the District and its officers, directors, employees and agents from and against all claims, suits, actions, losses, damages, liabilities, costs, and expenses of any nature whatsoever, including attorney's fees, resulting from, arising out of, or relating to the activities of Grantee or its officers, directors, employees, subcontractors, or agents under this Grant (each of the foregoing individually or collectively a "Claim" for purposes of this section).

SECTION 12: DEFAULT

12.1.1 **Grantee.** Grantee will be in default under this Grant upon the occurrence of any of the following events as determined by District or by school's sponsor (ODE):

12.1.2 Grantee fails to perform, observe or discharge any of its covenants, agreements, or obligations under this Grant or required by the State of Oregon, including but not limited to its financial accounting or reporting requirements under this Grant.

12.1.3 Grantee uses or expends Grant Funds for any purpose other than that defined in this Grant.

12.2 **District.** District will be in default under this Grant if District fails to perform, observe or discharge any of its covenants, agreements, or obligations under this Grant.

SECTION 13: REMEDIES

13.1 **District Remedies.** In the event Grantee is in default under Section 12, District may, at its option, pursue any or all of the remedies available to it under this Grant and at law or in equity, including, but not limited to (a) termination of this Grant under Section 16, (b) reducing or withholding payment for Project activities that Grantee has failed to complete according to the Act, (c) requiring Grantee to complete, at Grantee's expense, additional activities necessary to satisfy its obligations or meet performance standards under this Grant, (d) withholding payment of State School Funds, (e) repayment of unused or inappropriately used Grant funds, including exercise of its right of recovery of overpayments under Section 14 of this Grant or setoff, or both. These remedies are cumulative to the extent the remedies are not inconsistent, and District may pursue any remedy or remedies singly, collectively, successively or in any order whatsoever.

13.2 **Grantee Remedies.** In the event District is in default under Section 12 and whether or not Grantee elects to exercise its right to terminate this Grant under Section 16.3.2, Grantee's remedy may be exercised through any dispute provisions in this agreement.

SECTION 14: RECOVERY OF OVERPAYMENTS

If payments to Grantee under this Grant, or any other agreement between District and Grantee, exceed the amount to which Grantee is entitled, District may, after notifying Grantee in writing, withhold from payments due Grantee under this Grant or other agreement between District and Grantee, such amounts, over such periods of times, as are necessary to recover the amount of the overpayment.

SECTION 15: LIMITATION OF LIABILITY

EXCEPT FOR LIABILITY ARISING UNDER OR RELATED TO SECTION 11, NEITHER PARTY WILL BE LIABLE TO THE OTHER FOR INCIDENTAL, CONSEQUENTIAL, OR OTHER INDIRECT DAMAGES ARISING OUT OF OR RELATED TO THIS GRANT, REGARDLESS OF WHETHER THE LIABILITY CLAIM IS BASED IN CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, PRODUCT LIABILITY OR OTHERWISE. NEITHER PARTY WILL BE LIABLE TO THE OTHER FOR ANY DAMAGES OF ANY SORT ARISING SOLELY FROM THE TERMINATION OF THIS GRANT IN ACCORDANCE WITH ITS TERMS.

SECTION 16: TERMINATION

16.1 **Mutual.** This Grant may be terminated at any time by mutual written consent of the Parties.

16.2 **By District.** District may terminate this Grant as follows:

16.2.1 Upon 30 days advance written notice to Grantee, which notice Grantee will within 5 business days provide to its sponsor (ODE);

16.2.2 Immediately upon written notice to Grantee, if District fails to receive funding, or allocations, or other expenditure authority at levels sufficient in District's reasonable administrative discretion, to perform its obligations under this Grant;

16.2.3 Immediately upon written notice to Grantee, if federal or state laws, rules, regulations or guidelines are modified or interpreted in such a way that the District's performance under this Grant is prohibited or District is prohibited from paying for such performance from the planned funding source;

16.2.4 Immediately upon written notice to Grantee, if Grantee is in default under this Grant and such default remains uncured 30 days after written notice thereof to Grantee; or

16.2.5 As otherwise expressly provided in this Grant.

16.3 **By Grantee.** Grantee may terminate this Grant as follows:

16.3.1 Upon 30 days advance written notice to District;

16.3.2 Immediately upon written notice to District, if District is in default under this Grant and such default remains uncured 30 days after written notice thereof to District; or

16.3.3 As otherwise expressly provided in this Grant.

16.4 **Cease Activities.** Upon receiving a notice of termination of this Grant, Grantee will immediately cease all activities under this Grant, unless District expressly directs otherwise in such notice. Upon termination, Grantee will deliver to District all documents, information, and reports related to the Grant.

SECTION 17: INSURANCE

Grantee shall maintain insurance set forth in the charter contract and any necessary insurance to cover activities related to the Project as reasonably determined by the District or its sponsor (ODE).

SECTION 18: NONAPPROPRIATION

District's obligation to pay any amounts and otherwise perform its duties under this Grant is conditioned upon District receiving funding, appropriations, limitations, allocations, or other expenditure authority sufficient to allow District, in the exercise of its reasonable administrative discretion, to meet its obligations under this Grant.

SECTION 19: AMENDMENTS

The terms of this Grant may not be altered, modified, supplemented or otherwise amended, except by written agreement of the Parties.

SECTION 20: NOTICE

Except as otherwise expressly provided in this Grant, any notices to be given relating to this Grant must be given in writing by facsimile, email, personal delivery, or postage prepaid mail, to a Party's Grant Manager at the physical address, fax number or email address set forth in this Grant, or to such other addresses as either Party may indicate pursuant to this Section 20. Any notice so addressed and mailed becomes effective five (5) days after mailing. Any notice given by personal delivery becomes effective when actually delivered. Any notice given by email becomes effective upon the sender's receipt of confirmation generated by the recipient's email system that the notice has been received by the recipient's email system. Any notice given by facsimile becomes effective upon electronic confirmation of successful transmission to the designated fax number.

SECTION 21: SEVERABILITY

The Parties agree that if any term or provision of this Grant is declared by a court of competent jurisdiction to be illegal or in conflict with any law, the validity of the remaining terms and provisions will not be affected, and the rights and obligations of the Parties will be construed and enforced as if the Grant did not contain the particular term or provision held to be invalid.

SECTION 22: COUNTERPARTS

This Grant may be executed in several counterparts, all of which when taken together shall constitute one agreement, notwithstanding that all Parties are not signatories to the same counterpart. Each copy of the Grant so executed constitutes an original.

SECTION 23: COMPLIANCE WITH LAW

In connection with their activities under this Grant, the Parties shall comply with all applicable federal, state and local laws.

SECTION 24: INTENDED BENEFICIARIES

District and Grantee are the only parties to this Grant and are the only parties entitled to enforce its terms. Nothing in this Grant provides, is intended to provide, or may be construed to provide any direct or indirect benefit or right to third parties unless such third parties are individually identified by name herein and expressly described as intended beneficiaries of this Grant.

SECTION 25: TIME IS OF THE ESSENCE

Time is of the essence in Grantee's performance of the Project activities under this Grant.

SECTION 26: MERGER, WAIVER

This Grant and all exhibits and attachments, if any, constitute the entire agreement between the Parties on the subject matter hereof. There are no understandings, agreements, or representations, oral or written, not specified herein regarding this Grant. No waiver or consent under this Grant binds either Party unless in writing and signed by both Parties. Such waiver or consent, if made, is effective only in the specific instance and for the specific purpose given. EACH PARTY, BY SIGNATURE OF ITS AUTHORIZED REPRESENTATIVE, HEREBY ACKNOWLEDGES THAT IT HAS READ THIS GRANT, UNDERSTANDS IT, AND AGREES TO BE BOUND BY ITS TERMS AND CONDITIONS.

SECTION 27: RECORDS MAINTENANCE, MUNICIPAL AUDIT, AND ACCESS

Grantee shall maintain all financial records relating to this Grant in accordance with generally accepted accounting principles. In addition, Grantee shall maintain any other records, books, documents, papers, plans, records of shipments and payments, and writings of Grantee, whether in paper, electronic or other form, that are pertinent to this Grant in such a manner as to clearly document Grantee performance. All financial records, other records, books, documents, papers, plans, records of shipments and payments, and writings of Grantee, whether in paper, electronic or other form, that are pertinent to this Grant, are collectively referred to as "Records." Grantee acknowledges and agrees that District, Grantee's sponsor (ODE), and the Oregon Secretary of State's Office and their duly authorized representatives will have access to all Records to perform examinations and audits and make excerpts and transcripts. All Funds received by Grantee as part of the Grant shall be accounted for separately and included in the Grantee's municipal audit according to ORS 338.095 and reported to ODE as Grantee's sponsor annually. Grantee shall retain and keep accessible all Records for a minimum of five (5) years, or such longer period as may be required by applicable law, following termination of this Grant, or until the conclusion of any audit, controversy or litigation arising out of or related to this Grant, whichever date is later.

SECTION 28: HEADINGS

The headings and captions to sections of this Grant have been inserted for identification and reference purposes only and may not be used to construe the meaning or to interpret this Grant.

SECTION 29: GRANT DOCUMENTS

This Grant consists of the following documents, which are listed in descending order of precedence: [INSERT relevant documents as needed]

SECTION 30: SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Grant as of the dates set forth below.

MULTNOMAH COUNTY SCHOOL DISTRICT NO. 1J

By: _____ 4/4/25

School District Representative — Date

Erica Kreger, Contracts Manager

Printed Name, Title

Ivy Charter School

By: _____

Signature of Charter School Representative

4/3/25

Date

Nikki Jones

Printed Name, Title

CONTRACT BETWEEN LE MONDE FRENCH IMMERSON CHARTER SCHOOL AND PORTLAND PUBLIC SCHOOL DISTRICT NO 1J

SECTION 1: AUTHORITY

Pursuant to the "Student Success Act", codified at 2019 Oregon Laws Chapter 122 and as amended from time to time (the "Act"), Multnomah County School District No. 1J (the "District") is authorized to distribute funding from District's allocation of the Student Investment Account (SIA) as described in Section 10, subsection 4, of the Act. The District shall serve as the fiscal agent for Le Monde French Immersion Charter School ("Grantee") for Student Investment Account grant funds only. The Grantee will serve as their own fiscal agent for all other funding streams within the Oregon Department of Education's (the "Department" or "ODE") Integrated Plan.

SECTION 2: PURPOSE

The purpose of the programs under which this Grant is issued is to provide Grantee funding to meet students' mental or behavioral health needs and increase academic achievement for students, including reducing academic disparities for students that are economically disadvantaged; have historically experienced academic disparities; and any others as determined by the State Board of Education.

SECTION 3: EFFECTIVE DATE AND DURATION

When all Parties have executed this Grant, and all necessary approvals have been obtained, this Grant shall be effective on the same date (July 1, 2025) as the District's SIA agreement with ODE and, unless terminated earlier in accordance with its terms, shall expire on the same date (June 30, 2027) as the District's agreement with ODE.

SECTION 4: GRANT MANAGERS

4.1 District's Grant Manager is:

Kristin Johnson, Financial Operations Manager, Grant Accounting
501 N. Dixon St.
Portland, OR 97227
503-916-3161
kjohnson5@pps.net

4.2 Grantee's Grant Manager is:

Shouka Rezvani, Executive Director
2044 E. Burnside Street
Portland, OR 97214
503-467-7529
shouka@lemondeimmersion.org

4.3 A Party may designate a new Grant Manger by written notice to the other Party.

SECTION 5: PLAN AND BUDGET

5.1 Grantee shall perform the activities as submitted in the Integrated Programs application including the Integrated Programs Budget for 2025-27, along with their Outcomes and Strategies.

SECTION 6: GRANT FUNDS AND EXCHANGE OF SERVICES

6.1 **Grantee Allocation.** In accordance with the terms and conditions of this Grant, the District shall provide Grantee 100% of the SIA Allocation amount generated by the ADMw attributed to the Grantee and published by ODE in the Extended ADMw reports for the most recent *closed school year* for the purposes described in Section 2; and District shall pay the Grantee from solely monies available through its District SIA Grant Allocation (the "Funding Source"). Funds received by the Grantee under this Agreement (the "Grant Funds") may be used only for eligible expenditures authorized by this Grant and incurred during the Performance Period. *(note: "closed school year" refers to 2023-24 for the 2025-26 SIA allocations and 2024-25 for the 2026-27 SIA allocations.)*

6.1.1 **Administrative Rate**. Grantee may not use any of the Grantee's allocation for administrative costs.

6.1.2 The Grantee must establish a separate account for all funds received as part of the Grant.

SECTION 7: DISBURSEMENT GENERALLY

7.1 Disbursement.

7.1.1 District shall disburse Grant Funds by Electronic Funds Transfer within ten (10) business days of District receiving the SIA allocation from ODE.

7.1.2 If District determines that any completed Project activities or documentation are not acceptable in the District's reasonable discretion and that any deficiencies are the responsibility of Grantee, District shall prepare a detailed written description of the deficiencies and will deliver such notice to Grantee, in addition to any other remedies for Default by Grantee under this Agreement. At District's discretion, Grantee shall correct any deficiencies at no cost to District within 30 business days or as otherwise required by District.

7.1.3 All expenses must adhere strictly to ODE guidance and rules adopted by the State Board of Education regarding the allowable uses of SIA grant funds.

7.2 **Conditions Precedent to Disbursement.** District's obligation to disburse Grant Funds to Grantee under this Grant is subject to satisfaction of each of the following conditions precedent:

7.2.1 District has received sufficient funding to allow District, in the exercise of its reasonable administrative discretion, to make the disbursement.

7.2.2 No default as described in Section 12 has occurred.

7.2.3 Grantee's representations and warranties set forth in Section 8 are true and correct on the date of disbursement(s) with the same effect as though made on the date of disbursement.

7.3 **Recovery of Grant Funds.** Any Grant Funds disbursed to Grantee under this Grant that are expended in violation or contravention of one or more of the provisions of this Grant ("Misexpended Funds") or that remain unexpended on the earlier of termination or expiration of this Grant ("Unexpended Funds") must be returned to District. Grantee shall return all Misexpended Funds and Unexpended Funds to District promptly after District's written demand, but in any event no later than 30 business days after the District's written demand.

7.4 **Duplicate Payment.** Grantee shall not be compensated for, or receive any other form of duplicate, overlapping or multiple payments for the same costs financed by or costs and expenses paid for by Grant Funds from any agency of the State of Oregon or the United States of America or any other party, organization or individual.

SECTION 8: REPRESENTATIONS AND WARRANTIES

8.1 **Organization/Authority.** Grantee represents and warrants to District that:

8.1.1 Grantee is an Oregon Nonprofit Corporation duly organized and validly existing under the laws of the State of Oregon, is eligible to receive the Grant Funds and has full power, authority and legal right to make this Grant and to incur and perform its obligations hereunder;

8.1.2 The making and performance by Grantee of this Grant (a) have been duly authorized by Grantee, (b) do not and will not violate any provision of any applicable law, rule, regulation, or order of any court, regulatory commission, board, or other administrative agency or any provision of Grantee's Articles of Incorporation or Bylaws; and (c) do not and will not result in the breach of, or constitute a default or require any consent under any other agreement or instrument to which Grantee is a party or by which Grantee or any of its properties may be bound or affected. No authorization, consent, license, approval of, or filing or registration with or notification to any governmental body or regulatory or supervisory authority is required for the execution, delivery or performance by Grantee of this Grant, other than those that have already been obtained;

8.1.3 This Grant has been duly executed and delivered by Grantee and constitutes a legal, valid and binding obligation of Grantee enforceable in accordance with its terms;

8.1.4 Grantee is, and throughout the Performance Period will be, in compliance with its charter agreement and all Oregon laws applicable to charter schools operating in the State of Oregon including, without limitation, ORS 338.035; and

8.1.5 The representations and warranties set forth in this section are in addition to, and not in lieu of, any other representations or warranties provided by Grantee.

SECTION 9: GOVERNING LAW, CONSENT TO JURISDICTION

This Grant shall be governed by and construed in accordance with the laws of the State of Oregon without regard to principles of conflicts of law. Any claim, action, suit or proceeding (collectively "Claim") between District or any other agency or department of the State of Oregon, or both, and Grantee that arises from or relates to this Grant shall be brought and conducted solely and exclusively within the Circuit Court of Multnomah County for the State of Oregon; provided, however, if a Claim must be brought in a federal forum, then it shall be brought and conducted solely and exclusively within the United States District Court for the District of Oregon. In no event shall this Section be construed as a waiver by the State of Oregon of any form of defense or immunity, whether sovereign immunity, governmental immunity, immunity based on the eleventh amendment to the Constitution of the United States or otherwise, to or from any Claim or from the jurisdiction of any court. Grantee, BY EXECUTION OF THIS GRANT, HEREBY CONSENTS TO THE IN PERSONAM JURISDICTION OF SAID COURTS.

SECTION 10: ACCOUNTABILITY AND REPORTING

10.1 Grantee will identify longitudinal performance growth targets (the "Targets") in accordance with the guidance published by the Department. In addition to those Targets required by the Act, Grantee may identify local Targets.

10.2 Grantee will follow the reporting timeline as indicated by the Department.

SECTION 11: INDEMNIFICATION

11.1 Grantee shall defend, save, hold harmless, and indemnify the District and its officers, directors, employees and agents from and against all claims, suits, actions, losses, damages, liabilities, costs, and expenses of any nature whatsoever, including attorney's fees, resulting from, arising out of, or relating to the activities of Grantee or its officers, directors, employees, subcontractors, or agents under this Grant (each of the foregoing individually or collectively a "Claim" for purposes of this section).

SECTION 12: DEFAULT

12.1 **Grantee.** Grantee will be in default under this Grant upon the occurrence of any of the following events:

12.1.1 Grantee fails to perform, observe or discharge any of its covenants, agreements, or obligations under this Grant or required by the State of Oregon, including but not limited to its financial accounting or reporting requirements under this Grant.

12.1.2 Grantee uses or expends Grant Funds for any purpose other than that defined in this Grant.

12.2 **District.** District will be in default under this Grant if District fails to perform, observe or discharge any of its covenants, agreements, or obligations under this Grant.

SECTION 13: REMEDIES

13.1 **District Remedies.** In the event Grantee is in default under Section 12, District may, at its option, pursue any or all of the remedies available to it under this Grant and at law or in equity, including, but not limited to (a) termination of this Grant under Section 16, (b) reducing or withholding payment for Project activities that Grantee has failed to complete according to the Act, (c) requiring Grantee to complete, at Grantee's expense, additional activities necessary to satisfy its obligations or meet performance standards under this Grant, (d) withholding payment of State School Funds, (e) repayment of unused or inappropriately used Grant funds, including exercise of its right of recovery of overpayments under Section 14 of this Grant or setoff, or both, and/or (g) pursue termination of the charter contract as per ORS 338.105. These remedies are cumulative to the extent the remedies are not inconsistent, and District may pursue any remedy or remedies singly, collectively, successively or in any order whatsoever.

13.2 **Grantee Remedies.** In the event District is in default under Section 12 and whether or not Grantee elects to exercise its right to terminate this Grant under Section 16.3.2, Grantee's remedy may be exercised through any dispute provisions in this agreement or in the current executed charter contract.

SECTION 14: RECOVERY OF OVERPAYMENTS

If payments to Grantee under this Grant, or any other agreement between District and Grantee, exceed the amount to which Grantee is entitled, District may, after notifying Grantee in writing, withhold from payments due Grantee under this Grant or other agreement between District or Grantee, such amounts, over such periods of times, as are necessary to recover the amount of the overpayment.

SECTION 15: LIMITATION OF LIABILITY

EXCEPT FOR LIABILITY ARISING UNDER OR RELATED TO SECTION 11, NEITHER PARTY WILL BE LIABLE TO THE OTHER FOR INCIDENTAL, CONSEQUENTIAL, OR OTHER INDIRECT DAMAGES ARISING OUT OF OR RELATED TO THIS GRANT, REGARDLESS OF WHETHER THE LIABILITY CLAIM IS BASED IN CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, PRODUCT LIABILITY OR OTHERWISE. NEITHER PARTY WILL BE LIABLE TO THE OTHER FOR ANY DAMAGES OF ANY SORT ARISING SOLELY FROM THE TERMINATION OF THIS GRANT IN ACCORDANCE WITH ITS TERMS.

SECTION 16: TERMINATION

16.1 **Mutual.** This Grant may be terminated at any time by mutual written consent of the Parties.

16.2 **By District.** District may terminate this Grant as follows:

16.2.1 Upon 30 days advance written notice to Grantee;

16.2.2 Immediately upon written notice to Grantee, if District fails to receive funding, or allocations, or other expenditure authority at levels sufficient in District's reasonable administrative discretion, to perform its obligations under this Grant;

16.2.3 Immediately upon written notice to Grantee, if federal or state laws, rules, regulations or guidelines are modified or interpreted in such a way that the District's performance under this Grant is prohibited or District is prohibited from paying for such performance from the planned funding source;

16.2.4 Immediately upon written notice to Grantee, if Grantee is in default under this Grant and such default remains uncured 30 days after written notice thereof to Grantee; or

16.2.5 As otherwise expressly provided in this Grant.

16.3 **By Grantee.** Grantee may terminate this Grant as follows:

16.3.1 Upon 30 days advance written notice to District;

16.3.2 Immediately upon written notice to District, if District is in default under this Grant and such default remains uncured 30 days after written notice thereof to District; or

16.3.3 As otherwise expressly provided in this Grant.

16.4 **Cease Activities.** Upon receiving a notice of termination of this Grant, Grantee will immediately cease all activities under this Grant, unless District expressly directs otherwise in such notice. Upon termination, Grantee will deliver to District all documents, information, and reports related to the Grant.

SECTION 17: INSURANCE

Grantee shall maintain insurance set forth in the charter contract and any necessary insurance to cover activities related to the Project as reasonably determined by the District.

SECTION 18: NONAPPROPRIATION

District's obligation to pay any amounts and otherwise perform its duties under this Grant is conditioned upon District receiving funding, appropriations, limitations, allocations, or other expenditure authority sufficient to allow District, in the exercise of its reasonable administrative discretion, to meet its obligations under this Grant.

SECTION 19: AMENDMENTS

The terms of this Grant may not be altered, modified, supplemented or otherwise amended, except by written agreement of the Parties.

SECTION 20: NOTICE

Except as otherwise expressly provided in this Grant, any notices to be given relating to this Grant must be given in writing by facsimile, email, personal delivery, or postage prepaid mail, to a Party's Grant Manager at the physical address, fax number or email address set forth in this Grant, or to such other addresses as either Party may indicate pursuant to this Section 20. Any notice so addressed and mailed becomes effective five (5) days after mailing. Any notice given by personal delivery becomes effective when actually delivered. Any notice given by email becomes effective upon the sender's receipt of confirmation generated by the recipient's email system that the notice has been received by the recipient's email system. Any notice given by facsimile becomes effective upon electronic confirmation of successful transmission to the designated fax number.

SECTION 21: SEVERABILITY

The Parties agree that if any term or provision of this Grant is declared by a court of competent jurisdiction to be illegal or in conflict with any law, the validity of the remaining terms and provisions will not be affected, and the rights and obligations of the Parties will be construed and enforced as if the Grant did not contain the particular term or provision held to be invalid.

SECTION 22: COUNTERPARTS

This Grant may be executed in several counterparts, all of which when taken together shall constitute one agreement, notwithstanding that all Parties are not signatories to the same counterpart. Each copy of the Grant so executed constitutes an original.

SECTION 23: COMPLIANCE WITH LAW

In connection with their activities under this Grant, the Parties shall comply with all applicable federal, state and local laws.

SECTION 24: INTENDED BENEFICIARIES

District and Grantee are the only parties to this Grant and are the only parties entitled to enforce its terms. Nothing in this Grant provides, is intended to provide, or may be construed to provide any direct or indirect benefit or right to third parties unless such third parties are individually identified by name herein and expressly described as intended beneficiaries of this Grant.

SECTION 25: TIME IS OF THE ESSENCE

Time is of the essence in Grantee's performance of the Project activities under this Grant.

SECTION 26: MERGER, WAIVER

This Grant and all exhibits and attachments, if any, constitute the entire agreement between the Parties on the subject matter hereof. There are no understandings, agreements, or representations, oral or written, not specified herein regarding this Grant. No waiver or consent under this Grant binds either Party unless in writing and signed by both Parties. Such waiver or consent, if made, is effective only in the specific instance and for the specific purpose given. EACH PARTY, BY SIGNATURE OF ITS AUTHORIZED REPRESENTATIVE, HEREBY ACKNOWLEDGES THAT IT HAS READ THIS GRANT, UNDERSTANDS IT, AND AGREES TO BE BOUND BY ITS TERMS AND CONDITIONS.

SECTION 27: RECORDS MAINTENANCE, MUNICIPAL AUDIT, AND ACCESS

Grantee shall maintain all financial records relating to this Grant in accordance with generally accepted accounting principles. In addition, Grantee shall maintain any other records, books, documents, papers, plans, records of shipments and payments, and writings of Grantee, whether in paper, electronic or other form, that are pertinent to this Grant in such a manner as to clearly document Grantee performance. All financial records, other records, books, documents, papers, plans, records of shipments and payments, and writings of Grantee, whether in paper, electronic or other form, that are pertinent to this Grant, are collectively referred to as "Records." Grantee acknowledges and agrees that District and the Oregon Secretary of State's Office and their duly authorized representatives will have access to all Records to perform examinations and audits and make excerpts and transcripts. All Funds received by Grantee as part of the Grant shall be accounted for separately and included in the Grantee's municipal audit according to ORS 338.095 and reported to District annually. Grantee shall retain and keep accessible all Records for a minimum of five (5) years, or such longer period as may be required by applicable law, following termination of this Grant, or until the conclusion of any audit, controversy or litigation arising out of or related to this Grant, whichever date is later.

SECTION 28: HEADINGS

The headings and captions to sections of this Grant have been inserted for identification and reference purposes only and may not be used to construe the meaning or to interpret this Grant.

SECTION 29: GRANT DOCUMENTS

This Grant consists of the following documents, which are listed in descending order of precedence: [INSERT relevant documents as needed]

SECTION 30: SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Grant as of the dates set forth below.

MULTNOMAH COUNTY SCHOOL DISTRICT NO. 1J

By: _____ 4/4/25

School District Representative — Date

Contracts Manager, Portland Public Schools

Printed Name, Title

Le Monde French Immersion Charter School

By: _____

Signature of Charter School Representative

4/3/2025

Date

Shouka Rezvani, Executive Director

Printed Name, Title

CONTRACT BETWEEN PORTLAND ARTHUR ACADEMY CHARTER SCHOOL AND PORTLAND PUBLIC SCHOOL DISTRICT NO 1J

SECTION 1: AUTHORITY

Pursuant to the "Student Success Act", codified at 2019 Oregon Laws Chapter 122 and as amended from time to time (the "Act"), Multnomah County School District No. 1J (the "District") is authorized to distribute funding from District's allocation of the Student Investment Account (SIA) as described in Section 10, subsection 4, of the Act. The District shall serve as the fiscal agent for Portland Arthur Academy Charter School ("Grantee") for Student Investment Account grant funds only. The Grantee will serve as their own fiscal agent for all other funding streams within the Oregon Department of Education's (the "Department" or "ODE") Integrated Plan.

SECTION 2: PURPOSE

The purpose of the programs under which this Grant is issued is to provide Grantee funding to meet students' mental or behavioral health needs and increase academic achievement for students, including reducing academic disparities for students that are economically disadvantaged; have historically experienced academic disparities; and any others as determined by the State Board of Education.

SECTION 3: EFFECTIVE DATE AND DURATION

When all Parties have executed this Grant, and all necessary approvals have been obtained, this Grant shall be effective on the same date (July 1, 2025) as the District's SIA agreement with ODE and, unless terminated earlier in accordance with its terms, shall expire on the same date (June 30, 2027) as the District's agreement with ODE.

SECTION 4: GRANT MANAGERS

4.1 District's Grant Manager is:

Kristin Johnson, Financial Operations Manager, Grant Accounting
501 N. Dixon St.
Portland, OR 97227
503-916-3161
kjohnson5@pps.net

4.2 Grantee's Grant Manager is:

Stephani Walker
13809 SE Division St. Suite A
Portland, OR 97236
503-762-6061
swalker@arthuracademy.org

4.3 A Party may designate a new Grant Manger by written notice to the other Party.

SECTION 5: PLAN AND BUDGET

5.1 Grantee shall perform the activities as submitted in the Integrated Programs application including the Integrated Programs Budget for 2025-27, along with their Outcomes and Strategies.

SECTION 6: GRANT FUNDS AND EXCHANGE OF SERVICES

6.1 **Grantee Allocation.** In accordance with the terms and conditions of this Grant, the District shall provide Grantee 100% of the SIA Allocation amount generated by the ADMw attributed to the Grantee and published by ODE in the Extended ADMw reports for the most recent *closed school year* for the purposes described in Section 2; and District shall pay the Grantee from solely monies available through its District SIA Grant Allocation (the "Funding Source"). Funds received by the Grantee under this Agreement (the "Grant Funds") may be used only for eligible expenditures authorized by this Grant and incurred during the Performance Period. *(Note: "closed school year" refers to 2023-24 for the 2025-26 SIA allocations and 2024-25 for the 2026-27 SIA allocations.)*

6.1.1 **Administrative Rate**. Grantee may not use any of the Grantee's allocation for administrative costs.

6.1.2 The Grantee must establish a separate account for all funds received as part of the Grant.

SECTION 7: DISBURSEMENT GENERALLY

7.1 Disbursement.

7.1.1 District shall disburse Grant Funds by Electronic Funds Transfer within ten (10) business days of District receiving the SIA allocation from ODE.

7.1.2 If District determines that any completed Project activities or documentation are not acceptable in the District's reasonable discretion and that any deficiencies are the responsibility of Grantee, District shall prepare a detailed written description of the deficiencies and will deliver such notice to Grantee, in addition to any other remedies for Default by Grantee under this Agreement. At District's discretion, Grantee shall correct any deficiencies at no cost to District within 30 business days or as otherwise required by District.

7.1.3 All expenses must adhere strictly to ODE guidance and rules adopted by the State Board of Education regarding the allowable uses of SIA grant funds.

7.2 **Conditions Precedent to Disbursement.** District's obligation to disburse Grant Funds to Grantee under this Grant is subject to satisfaction of each of the following conditions

precedent:

7.2.1 District has received sufficient funding to allow District, in the exercise of its reasonable administrative discretion, to make the disbursement.

7.2.2 No default as described in Section 12 has occurred.

7.2.3 Grantee's representations and warranties set forth in Section 8 are true and correct on the date of disbursement(s) with the same effect as though made on the date of disbursement.

7.3 **Recovery of Grant Funds.** Any Grant Funds disbursed to Grantee under this Grant that are expended in violation or contravention of one or more of the provisions of this Grant ("Misexpended Funds") or that remain unexpended on the earlier of termination or expiration of this Grant ("Unexpended Funds") must be returned to District. Grantee shall return all Misexpended Funds and Unexpended Funds to District promptly after District's written demand, but in any event no later than 30 business days after the District's written demand.

7.4 **Duplicate Payment.** Grantee shall not be compensated for, or receive any other form of duplicate, overlapping or multiple payments for the same costs financed by or costs and expenses paid for by Grant Funds from any agency of the State of Oregon or the United States of America or any other party, organization or individual.

SECTION 8: REPRESENTATIONS AND WARRANTIES

8.1 **Organization/Authority.** Grantee represents and warrants to District that:

8.1.1 Grantee is an Oregon Nonprofit Corporation duly organized and validly existing under the laws of the State of Oregon, is eligible to receive the Grant Funds and has full power, authority and legal right to make this Grant and to incur and perform its obligations hereunder;

8.1.2 The making and performance by Grantee of this Grant (a) have been duly authorized by Grantee, (b) do not and will not violate any provision of any applicable law, rule, regulation, or order of any court, regulatory commission, board, or other administrative agency or any provision of Grantee's Articles of Incorporation or Bylaws; and (c) do not and will not result in the breach of, or constitute a default or require any consent under any other agreement or instrument to which Grantee is a party or by which Grantee or any of its properties may be bound or affected. No authorization, consent, license, approval of, or filing or registration with or notification to any governmental body or regulatory or supervisory authority is required for the execution, delivery or performance by Grantee of this Grant, other than those that have already been obtained;

8.1.3 This Grant has been duly executed and delivered by Grantee and constitutes a legal, valid and binding obligation of Grantee enforceable in accordance with its terms;

8.1.4 Grantee is, and throughout the Performance Period will be, in compliance with its charter agreement and all Oregon laws applicable to charter schools operating in the State of

Oregon including, without limitation, ORS 338.035; and

8.1.5 The representations and warranties set forth in this section are in addition to, and not in lieu of, any other representations or warranties provided by Grantee.

SECTION 9: GOVERNING LAW, CONSENT TO JURISDICTION

This Grant shall be governed by and construed in accordance with the laws of the State of Oregon without regard to principles of conflicts of law. Any claim, action, suit or proceeding (collectively "Claim") between District or any other agency or department of the State of Oregon, or both, and Grantee that arises from or relates to this Grant shall be brought and conducted solely and exclusively within the Circuit Court of Multnomah County for the State of Oregon; provided, however, if a Claim must be brought in a federal forum, then it shall be brought and conducted solely and exclusively within the United States District Court for the District of Oregon. In no event shall this Section be construed as a waiver by the State of Oregon of any form of defense or immunity, whether sovereign immunity, governmental immunity, immunity based on the eleventh amendment to the Constitution of the United States or otherwise, to or from any Claim or from the jurisdiction of any court. Grantee, BY EXECUTION OF THIS GRANT, HEREBY CONSENTS TO THE IN PERSONAM JURISDICTION OF SAID COURTS.

SECTION 10: ACCOUNTABILITY AND REPORTING

10.1 Grantee will identify longitudinal performance growth targets (the "Targets") in accordance with the guidance published by the Department. In addition to those Targets required by the Act, Grantee may identify local Targets.

10.2 Grantee will follow the reporting timeline as indicated by the Department.

SECTION 11: INDEMNIFICATION

11.1 Grantee shall defend, save, hold harmless, and indemnify the District and its officers, directors, employees and agents from and against all claims, suits, actions, losses, damages, liabilities, costs, and expenses of any nature whatsoever, including attorney's fees, resulting from, arising out of, or relating to the activities of Grantee or its officers, directors, employees, subcontractors, or agents under this Grant (each of the foregoing individually or collectively a "Claim" for purposes of this section).

SECTION 12: DEFAULT

12.1 **Grantee.** Grantee will be in default under this Grant upon the occurrence of any of the following events:

12.1.1 Grantee fails to perform, observe or discharge any of its covenants, agreements, or obligations under this Grant or required by the State of Oregon, including but not limited to its financial accounting or reporting requirements under this Grant.

12.1.2 Grantee uses or expends Grant Funds for any purpose other than that defined in this Grant.

12.2 **District.** District will be in default under this Grant if District fails to perform, observe or discharge any of its covenants, agreements, or obligations under this Grant.

SECTION 13: REMEDIES

13.1 **District Remedies.** In the event Grantee is in default under Section 12, District may, at its option, pursue any or all of the remedies available to it under this Grant and at law or in equity, including, but not limited to (a) termination of this Grant under Section 16, (b) reducing or withholding payment for Project activities that Grantee has failed to complete according to the Act, (c) requiring Grantee to complete, at Grantee's expense, additional activities necessary to satisfy its obligations or meet performance standards under this Grant, (d) withholding payment of State School Funds, (e) repayment of unused or inappropriately used Grant funds, including exercise of its right of recovery of overpayments under Section 14 of this Grant or setoff, or both, and/or (g) pursue termination of the charter contract as per ORS 338.105. These remedies are cumulative to the extent the remedies are not inconsistent, and District may pursue any remedy or remedies singly, collectively, successively or in any order whatsoever.

13.2 **Grantee Remedies.** In the event District is in default under Section 12 and whether or not Grantee elects to exercise its right to terminate this Grant under Section 16.3.2, Grantee's remedy may be exercised through any dispute provisions in this agreement or in the current executed charter contract.

SECTION 14: RECOVERY OF OVERPAYMENTS

If payments to Grantee under this Grant, or any other agreement between District and Grantee,

exceed the amount to which Grantee is entitled, District may, after notifying Grantee in writing, withhold from payments due Grantee under this Grant or other agreement between District and Grantee, such amounts, over such periods of times, as are necessary to recover the amount of the overpayment.

SECTION 15: LIMITATION OF LIABILITY

EXCEPT FOR LIABILITY ARISING UNDER OR RELATED TO SECTION 11, NEITHER PARTY WILL BE LIABLE TO THE OTHER FOR INCIDENTAL, CONSEQUENTIAL, OR OTHER INDIRECT DAMAGES ARISING OUT OF OR RELATED TO THIS GRANT, REGARDLESS OF WHETHER THE LIABILITY CLAIM IS BASED IN CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, PRODUCT LIABILITY OR OTHERWISE. NEITHER PARTY WILL BE LIABLE TO THE OTHER FOR ANY DAMAGES OF ANY SORT ARISING SOLELY FROM THE TERMINATION OF THIS GRANT IN ACCORDANCE WITH ITS TERMS.

SECTION 16: TERMINATION

16.1 **Mutual.** This Grant may be terminated at any time by mutual written consent of the Parties.

16.2 **By District.** District may terminate this Grant as follows:

16.2.1 Upon 30 days advance written notice to Grantee;

16.2.2 Immediately upon written notice to Grantee, if District fails to receive funding, or allocations, or other expenditure authority at levels sufficient in District's reasonable administrative discretion, to perform its obligations under this Grant;

16.2.3 Immediately upon written notice to Grantee, if federal or state laws, rules, regulations or guidelines are modified or interpreted in such a way that the District's performance under this Grant is prohibited or District is prohibited from paying for such performance from the planned funding source;

16.2.4 Immediately upon written notice to Grantee, if Grantee is in default under this Grant and such default remains uncured 30 days after written notice thereof to Grantee; or

16.2.5 As otherwise expressly provided in this Grant.

16.3 **By Grantee.** Grantee may terminate this Grant as follows:

16.3.1 Upon 30 days advance written notice to District;

16.3.2 Immediately upon written notice to District, if District is in default under this Grant and such default remains uncured 30 days after written notice thereof to District; or

16.3.3 As otherwise expressly provided in this Grant.

16.4 **Cease Activities.** Upon receiving a notice of termination of this Grant, Grantee will immediately cease all activities under this Grant, unless District expressly directs otherwise in such notice. Upon termination, Grantee will deliver to District all documents, information, and reports related to the Grant.

SECTION 17: INSURANCE

Grantee shall maintain insurance set forth in the charter contract and any necessary insurance to cover activities related to this Grant as reasonably determined by the District.

SECTION 18: NONAPPROPRIATION

District's obligation to pay any amounts and otherwise perform its duties under this Grant is conditioned upon District receiving funding, appropriations, limitations, allocations, or other expenditure authority sufficient to allow District, in the exercise of its reasonable administrative discretion, to meet its obligations under this Grant.

SECTION 19: AMENDMENTS

The terms of this Grant may not be altered, modified, supplemented or otherwise amended, except by written agreement of the Parties.

SECTION 20: NOTICE

Except as otherwise expressly provided in this Grant, any notices to be given relating to this Grant must be given in writing by facsimile, email, personal delivery, or postage prepaid mail, to a Party's Grant Manager at the physical address, fax number or email address set forth in this Grant, or to such other addresses as either Party may indicate pursuant to this Section 20. Any notice so addressed and mailed becomes effective five (5) days after mailing. Any notice given by personal delivery becomes effective when actually delivered. Any notice given by email becomes effective upon the sender's receipt of confirmation generated by the recipient's email system that the notice has been received by the recipient's email system. Any notice given by facsimile becomes effective upon electronic confirmation of successful transmission to the designated fax number.

SECTION 21: SEVERABILITY

The Parties agree that if any term or provision of this Grant is declared by a court of competent jurisdiction to be illegal or in conflict with any law, the validity of the remaining terms and provisions will not be affected, and the rights and obligations of the Parties will be construed and

enforced as if the Grant did not contain the particular term or provision held to be invalid.

SECTION 22: COUNTERPARTS

This Grant may be executed in several counterparts, all of which when taken together shall constitute one agreement, notwithstanding that all Parties are not signatories to the same counterpart. Each copy of the Grant so executed constitutes an original.

SECTION 23: COMPLIANCE WITH LAW

In connection with their activities under this Grant, the Parties shall comply with all applicable federal, state and local laws.

SECTION 24: INTENDED BENEFICIARIES

District and Grantee are the only parties to this Grant and are the only parties entitled to enforce its terms. Nothing in this Grant provides, is intended to provide, or may be construed to provide any direct or indirect benefit or right to third parties unless such third parties are individually identified by name herein and expressly described as intended beneficiaries of this Grant.

SECTION 25: TIME IS OF THE ESSENCE

Time is of the essence in Grantee's performance of the activities under this Grant.

SECTION 26: MERGER, WAIVER

This Grant and all exhibits and attachments, if any, constitute the entire agreement between the Parties on the subject matter hereof. There are no understandings, agreements, or representations, oral or written, not specified herein regarding this Grant. No waiver or consent under this Grant binds either Party unless in writing and signed by both Parties. Such waiver or consent, if made, is effective only in the specific instance and for the specific purpose given. EACH PARTY, BY SIGNATURE OF ITS AUTHORIZED REPRESENTATIVE, HEREBY ACKNOWLEDGES THAT IT HAS READ THIS GRANT, UNDERSTANDS IT, AND AGREES TO BE BOUND BY ITS TERMS AND CONDITIONS.

SECTION 27: RECORDS MAINTENANCE, MUNICIPAL AUDIT, AND ACCESS

Grantee shall maintain all financial records relating to this Grant in accordance with generally

accepted accounting principles. In addition, Grantee shall maintain any other records, books, documents, papers, plans, records of shipments and payments, and writings of Grantee, whether in paper, electronic or other form, that are pertinent to this Grant in such a manner as to clearly document Grantee performance. All financial records, other records, books, documents, papers, plans, records of shipments and payments, and writings of Grantee, whether in paper, electronic or other form, that are pertinent to this Grant, are collectively referred to as "Records." Grantee acknowledges and agrees that District and the Oregon Secretary of State's Office and their duly authorized representatives will have access to all Records to perform examinations and audits and make excerpts and transcripts. All Funds received by Grantee as part of the Grant shall be accounted for separately and included in the Grantee's municipal audit according to ORS 338.095 and reported to District annually. Grantee shall retain and keep accessible all Records for a minimum of five (5) years, or such longer period as may be required by applicable law, following termination of this Grant, or until the conclusion of any audit, controversy or litigation arising out of or related to this Grant, whichever date is later.

SECTION 28: HEADINGS

The headings and captions to sections of this Grant have been inserted for identification and reference purposes only and may not be used to construe the meaning or to interpret this Grant.

SECTION 29: GRANT DOCUMENTS

This Grant consists of the following documents, which are listed in descending order of precedence: [INSERT relevant documents as needed]

SECTION 30: SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Grant as of the dates set forth below.

MULTNOMAH COUNTY SCHOOL DISTRICT NO. 1J

By: _____ 4/4/25

School District Representative — Date

Erica Kreger, Contracts Manager

Printed Name, Title

Portland Arthur Academy Charter School

By: Stephani Walker

Signature of Charter School Representative

3-31-25

Date

Stephani Walker Executive Director

Printed Name, Title

CONTRACT BETWEEN PORTLAND VILLAGE CHARTER SCHOOL AND PORTLAND PUBLIC SCHOOL DISTRICT NO 1J

SECTION 1: AUTHORITY

Pursuant to the "Student Success Act", codified at 2019 Oregon Laws Chapter 122 and as amended from time to time (the "Act"), Multnomah County School District No. 1J (the "District") is authorized to distribute funding from District's allocation of the Student Investment Account (SIA) as described in Section 10, subsection 4, of the Act. The District shall serve as the fiscal agent for Portland Village School ("Grantee") for SIA grant funds only. The Grantee will serve as their own fiscal agent for all other funding streams within the Oregon Department of Education's (the "Department" or "ODE") Integrated Plan.

SECTION 2: PURPOSE

The purpose of the programs under which this Grant is issued is to provide Grantee funding to meet students' mental or behavioral health needs and increase academic achievement for students, including reducing academic disparities for students that are economically disadvantaged; have historically experienced academic disparities; and any others as determined by the State Board of Education.

SECTION 3: EFFECTIVE DATE AND DURATION

When all Parties have executed this Grant, and all necessary approvals have been obtained, this Grant shall be effective on the same date (July 1, 2025) as the District's SIA agreement with ODE and, unless terminated earlier in accordance with its terms, shall expire on the same date (June 30, 2027) as the District's agreement with ODE.

SECTION 4: GRANT MANAGERS

4.1 District's Grant Manager is:

Kristin Johnson, Financial Operations Manager, Grant Accounting
501 N. Dixon St.
Portland, OR 97227
503-916-3161
kjohnson5@pps.net

4.2 Grantee's Grant Manager is:

Jennifer Stackhouse, Executive Director
4650 S Macadam Ave
Portland, OR 97239
503-445-0056
jstackhouse@portlandvillageschool.org

4.3 A Party may designate a new Grant Manger by written notice to the other Party.

SECTION 5: PLAN AND BUDGET

5.1 Grantee shall perform the activities as submitted in the Integrated Programs application including the Integrated Programs Budget for 2025-27, along with their Outcomes and Strategies.

SECTION 6: GRANT FUNDS AND EXCHANGE OF SERVICES

6.1 **Grantee Allocation.** In accordance with the terms and conditions of this Grant, the District shall provide Grantee 100% of the SIA Allocation amount generated by the ADMw attributed to the Grantee and published by ODE in the Extended ADMw reports for the most recent *closed school year* for the purposes described in Section 2; and District shall pay the Grantee from solely monies available through its District SIA Grant Allocation (the "Funding Source"). Funds received by the Grantee under this Agreement (the "Grant Funds") may be used only for eligible expenditures authorized by this Grant and incurred during the Performance Period. *(Note: "closed school year" refers to 2023-24 for the 2025-26 SIA allocations and 2024-25 for the 2026-27 SIA allocations.)*

6.1.1 Administrative Rate. Grantee may not use any of the Grantee's allocation for administrative costs.

6.1.2 The Grantee must establish a separate account for all funds received as part of the Grant.

SECTION 7: DISBURSEMENT GENERALLY

7.1 Disbursement.

7.1.1 District shall disburse Grant Funds by Electronic Funds Transfer within ten (10) business days of District receiving the SIA allocation from ODE.

7.1.2 If District determines that any completed Project activities or documentation are not acceptable in the District's reasonable discretion and that any deficiencies are the responsibility of Grantee, District shall prepare a detailed written description of the deficiencies and will deliver such notice to Grantee, in addition to any other remedies for Default by Grantee under this Agreement. At District's discretion, Grantee shall correct any deficiencies at no cost to District within 30 business days or as otherwise required by District.

7.1.3 All expenses must adhere strictly to ODE guidance and rules adopted by the State Board of Education regarding the allowable uses of SIA grant funds.

7.2 **Conditions Precedent to Disbursement.** District's obligation to disburse Grant Funds to Grantee under this Grant is subject to satisfaction of each of the following conditions precedent:

7.2.1 District has received sufficient funding to allow District, in the exercise of its reasonable administrative discretion, to make the disbursement.

7.2.2 No default as described in Section 12 has occurred.

7.2.3 Grantee's representations and warranties set forth in Section 8 are true and correct on the date of disbursement(s) with the same effect as though made on the date of disbursement.

7.3 **Recovery of Grant Funds.** Any Grant Funds disbursed to Grantee under this Grant that are expended in violation or contravention of one or more of the provisions of this Grant ("Misexpended Funds") or that remain unexpended on the earlier of termination or expiration of this Grant ("Unexpended Funds") must be returned to District. Grantee shall return all Misexpended Funds and Unexpended Funds to District promptly after District's written demand, but in any event no later than 30 business days after the District's written demand.

7.4 **Duplicate Payment.** Grantee shall not be compensated for, or receive any other form of duplicate, overlapping or multiple payments for the same costs financed by or costs and expenses paid for by Grant Funds from any agency of the State of Oregon or the United States of America or any other party, organization or individual.

SECTION 8: REPRESENTATIONS AND WARRANTIES

8.1 **Organization/Authority.** Grantee represents and warrants to District that:

8.1.1 Grantee is an Oregon Nonprofit Corporation duly organized and validly existing under the laws of the State of Oregon, is eligible to receive the Grant Funds and has full power, authority and legal right to make this Grant and to incur and perform its obligations hereunder;

8.1.2 The making and performance by Grantee of this Grant (a) have been duly authorized by Grantee, (b) do not and will not violate any provision of any applicable law, rule, regulation, or order of any court, regulatory commission, board, or other administrative agency or any provision of Grantee's Articles of Incorporation or Bylaws; and (c) do not and will not result in the breach of, or constitute a default or require any consent under any other agreement or instrument to which Grantee is a party or by which Grantee or any of its properties may be bound or affected. No authorization, consent, license, approval of, or filing or registration with or notification to any governmental body or regulatory or supervisory authority is required for the execution, delivery or performance by Grantee of this Grant, other than those that have already been obtained;

8.1.3 This Grant has been duly executed and delivered by Grantee and constitutes a legal, valid and binding obligation of Grantee enforceable in accordance with its terms;

8.1.4 Grantee is, and throughout the Performance Period will be, in compliance with its charter agreement and all Oregon laws applicable to charter schools operating in the State of Oregon including, without limitation, ORS 338.035; and

8.1.5 The representations and warranties set forth in this section are in addition to, and not in lieu of, any other representations or warranties provided by Grantee.

SECTION 9: GOVERNING LAW, CONSENT TO JURISDICTION

This Grant shall be governed by and construed in accordance with the laws of the State of Oregon without regard to principles of conflicts of law. Any claim, action, suit or proceeding (collectively "Claim") between District or any other agency or department of the State of Oregon, or both, and Grantee that arises from or relates to this Grant shall be brought and conducted solely and exclusively within the Circuit Court of Multnomah County for the State of Oregon; provided, however, if a Claim must be brought in a federal forum, then it shall be brought and conducted solely and exclusively within the United States District Court for the District of Oregon. In no event shall this Section be construed as a waiver by the State of Oregon of any form of defense or immunity, whether sovereign immunity, governmental immunity, immunity based on the eleventh amendment to the Constitution of the United States or otherwise, to or from any Claim or from the jurisdiction of any court. Grantee, BY EXECUTION OF THIS GRANT, HEREBY CONSENTS TO THE IN PERSONAM JURISDICTION OF SAID COURTS.

SECTION 10: ACCOUNTABILITY AND REPORTING

10.1 Grantee will identify longitudinal performance growth targets (the "Targets") in accordance with the guidance published by the Department. In addition to those Targets required by the Act, Grantee may identify local Targets.

10.2 Grantee will follow the reporting timeline as indicated by the Department.

SECTION 11: INDEMNIFICATION

11.1 Grantee shall defend, save, hold harmless, and indemnify the District and its officers, directors, employees and agents from and against all claims, suits, actions, losses, damages, liabilities, costs, and expenses of any nature whatsoever, including attorney's fees, resulting from, arising out of, or relating to the activities of Grantee or its officers, directors, employees, subcontractors, or agents under this Grant (each of the foregoing individually or collectively a "Claim" for purposes of this section).

SECTION 12: DEFAULT

12.1 **Grantee.** Grantee will be in default under this Grant upon the occurrence of any of the following events:

12.1.1 Grantee fails to perform, observe or discharge any of its covenants, agreements, or obligations under this Grant or required by the State of Oregon, including but not limited to its financial accounting or reporting requirements under this Grant.

12.1.2 Grantee uses or expends Grant Funds for any purpose other than that defined in this Grant.

12.2 **District.** District will be in default under this Grant if District fails to perform, observe or discharge any of its covenants, agreements, or obligations under this Grant.

SECTION 13: REMEDIES

13.1 **District Remedies.** In the event Grantee is in default under Section 12, District may, at its option, pursue any or all of the remedies available to it under this Grant and at law or in equity, including, but not limited to (a) termination of this Grant under Section 16, (b) reducing or withholding payment for Project activities that Grantee has failed to complete according to the Act, (c) requiring Grantee to complete, at Grantee's expense, additional activities necessary to satisfy its obligations or meet performance standards under this Grant, (d) withholding payment of State School Funds, (e) repayment of unused or inappropriately used Grant funds, including exercise of its right of recovery of overpayments under Section 14 of this Grant or setoff, or both, and/or (g) pursue termination of the charter contract as per ORS 338.105. These remedies are cumulative to the extent the remedies are not inconsistent, and District may pursue any remedy or remedies singly, collectively, successively or in any order whatsoever.

13.2 **Grantee Remedies.** In the event District is in default under Section 12 and whether or not Grantee elects to exercise its right to terminate this Grant under Section 16.3.2, Grantee's remedy may be exercised through any dispute provisions in this agreement or in the current executed charter contract.

SECTION 14: RECOVERY OF OVERPAYMENTS

If payments to Grantee under this Grant, or any other agreement between District and Grantee, exceed the amount to which Grantee is entitled, District may, after notifying Grantee in writing, withhold from payments due Grantee under this Grant or other agreement between District and Grantee, such amounts, over such periods of times, as are necessary to recover the amount of the overpayment.

SECTION 15: LIMITATION OF LIABILITY

EXCEPT FOR LIABILITY ARISING UNDER OR RELATED TO SECTION 11, NEITHER PARTY WILL BE LIABLE TO THE OTHER FOR INCIDENTAL, CONSEQUENTIAL, OR OTHER INDIRECT DAMAGES ARISING OUT OF OR RELATED TO THIS GRANT, REGARDLESS OF WHETHER THE LIABILITY CLAIM IS BASED IN CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, PRODUCT LIABILITY OR OTHERWISE. NEITHER PARTY WILL BE LIABLE TO THE OTHER FOR ANY DAMAGES OF ANY SORT ARISING SOLELY FROM THE TERMINATION OF THIS GRANT IN ACCORDANCE WITH ITS TERMS.

SECTION 16: TERMINATION

16.1 **Mutual.** This Grant may be terminated at any time by mutual written consent of the Parties.

16.2 **By District.** District may terminate this Grant as follows:

16.2.1 Upon 30 days advance written notice to Grantee;

16.2.2 Immediately upon written notice to Grantee, if District fails to receive funding, or allocations, or other expenditure authority at levels sufficient in District's reasonable administrative discretion, to perform its obligations under this Grant;

16.2.3 Immediately upon written notice to Grantee, if federal or state laws, rules, regulations or guidelines are modified or interpreted in such a way that the District's performance under this Grant is prohibited or District is prohibited from paying for such performance from the planned funding source;

16.2.4 Immediately upon written notice to Grantee, if Grantee is in default under this Grant and such default remains uncured 30 days after written notice thereof to Grantee; or

16.2.5 As otherwise expressly provided in this Grant.

16.3 **By Grantee.** Grantee may terminate this Grant as follows:

16.3.1 Upon 30 days advance written notice to District;

16.3.2 Immediately upon written notice to District, if District is in default under this Grant and such default remains uncured 30 days after written notice thereof to District; or

16.3.3 As otherwise expressly provided in this Grant.

16.4 **Cease Activities.** Upon receiving a notice of termination of this Grant, Grantee will immediately cease all activities under this Grant, unless District expressly directs otherwise in such notice. Upon termination, Grantee will deliver to District all documents, information, and reports related to the Grant.

SECTION 17: INSURANCE

Grantee shall maintain insurance set forth in the charter contract and any necessary insurance to cover activities related to the Project as reasonably determined by the District.

SECTION 18: NONAPPROPRIATION

District's obligation to pay any amounts and otherwise perform its duties under this Grant is conditioned upon District receiving funding, appropriations, limitations, allocations, or other expenditure authority sufficient to allow District, in the exercise of its reasonable administrative discretion, to meet its obligations under this Grant.

SECTION 19: AMENDMENTS

The terms of this Grant may not be altered, modified, supplemented or otherwise amended, except by written agreement of the Parties.

SECTION 20: NOTICE

Except as otherwise expressly provided in this Grant, any notices to be given relating to this Grant must be given in writing by facsimile, email, personal delivery, or postage prepaid mail, to a Party's Grant Manager at the physical address, fax number or email address set forth in this Grant, or to such other addresses as either Party may indicate pursuant to this Section 20. Any notice so addressed and mailed becomes effective five (5) days after mailing. Any notice given by personal delivery becomes effective when actually delivered. Any notice given by email becomes effective upon the sender's receipt of confirmation generated by the recipient's email system that the notice has been received by the recipient's email system. Any notice given by facsimile becomes effective upon electronic confirmation of successful transmission to the designated fax number.

SECTION 21: SEVERABILITY

The Parties agree that if any term or provision of this Grant is declared by a court of competent jurisdiction to be illegal or in conflict with any law, the validity of the remaining terms and provisions will not be affected, and the rights and obligations of the Parties will be construed and enforced as if the Grant did not contain the particular term or provision held to be invalid.

SECTION 22: COUNTERPARTS

This Grant may be executed in several counterparts, all of which when taken together shall constitute one agreement, notwithstanding that all Parties are not signatories to the same counterpart. Each copy of the Grant so executed constitutes an original.

SECTION 23: COMPLIANCE WITH LAW

In connection with their activities under this Grant, the Parties shall comply with all applicable federal, state and local laws.

SECTION 24: INTENDED BENEFICIARIES

District and Grantee are the only parties to this Grant and are the only parties entitled to enforce its terms. Nothing in this Grant provides, is intended to provide, or may be construed to provide any direct or indirect benefit or right to third parties unless such third parties are individually identified by name herein and expressly described as intended beneficiaries of this Grant.

SECTION 25: TIME IS OF THE ESSENCE

Time is of the essence in Grantee's performance of the Project activities under this Grant.

SECTION 26: MERGER, WAIVER

This Grant and all exhibits and attachments, if any, constitute the entire agreement between the Parties on the subject matter hereof. There are no understandings, agreements, or representations, oral or written, not specified herein regarding this Grant. No waiver or consent under this Grant binds either Party unless in writing and signed by both Parties. Such waiver or consent, if made, is effective only in the specific instance and for the specific purpose given. EACH PARTY, BY SIGNATURE OF ITS AUTHORIZED REPRESENTATIVE, HEREBY ACKNOWLEDGES THAT IT HAS READ THIS GRANT, UNDERSTANDS IT, AND AGREES TO BE BOUND BY ITS TERMS AND CONDITIONS.

SECTION 27: RECORDS MAINTENANCE, MUNICIPAL AUDIT, AND ACCESS

Grantee shall maintain all financial records relating to this Grant in accordance with generally accepted accounting principles. In addition, Grantee shall maintain any other records, books, documents, papers, plans, records of shipments and payments, and writings of Grantee, whether in paper, electronic or other form, that are pertinent to this Grant in such a manner as to clearly document Grantee performance. All financial records, other records, books, documents, papers, plans, records of shipments and payments, and writings of Grantee, whether in paper, electronic or other form, that are pertinent to this Grant, are collectively referred to as "Records." Grantee acknowledges and agrees that District and the Oregon Secretary of State's Office and their duly authorized representatives will have access to all Records to perform examinations and audits and make excerpts and transcripts. All Funds received by Grantee as part of the Grant shall be accounted for separately and included in the Grantee's municipal audit according to ORS 338.095 and reported to District annually. Grantee shall retain and keep accessible all Records for a minimum of five (5) years, or such longer period as may be required by applicable law, following termination of this Grant, or until the conclusion of any audit, controversy or litigation arising out of or related to this Grant, whichever date is later.

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SECTION 29: GRANT DOCUMENTS

This Grant consists of the following documents, which are listed in descending order of precedence: [INSERT relevant documents as needed]

SECTION 30: SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Grant as of the dates set forth below.

MULTNOMAH COUNTY SCHOOL DISTRICT NO. 1J

By: _____ 4/4/25

School District Representative — Date

Erica Kreger, Contracts Manager

Printed Name, Title

Portland Village Charter School

By: _____

Signature of Charter School Representative

4/4/25

Date

Jennifer Stackhouse, Executive Director

Printed Name, Title